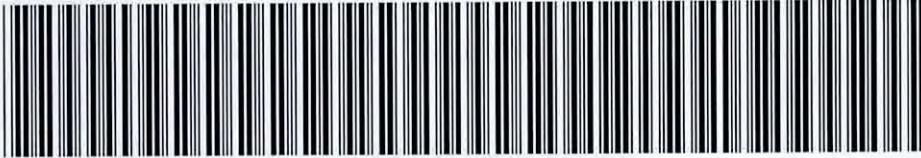


EWR D&I ANNOTATION



FAN-000001L122001DP116-2172

Artemis # : 000001L122001DP116

Record Created Date : 02/13/2013

Printed Date : 02/14/2013

Description :

DI12-064. SEQUENCE ID 116. QUARTER 2. 2006 CHEVROLET COBALT. THIS RESPONSE INCLUDES LAWSUIT DOCUMENTATION, A STATE CRASH REPORT, CRASH NARRATIVES AND PHOTOS. THIS WAS A SINGLE VEHICLE FRONTAL COLLISION WITH 1 FATALITY. ACCORDING TO THE STATE CRASH REPORT, THE DRIVER OF THE SUBJECT VEHICLE WAS DRIVING AT NIGHT EASTBOUND ON A LOCAL ROAD. FOR AN UNKNOWN REASON, THE SUBJECT VEHICLE DRIFTED ACROSS THE WESTBOUND LANES AND COLLIDED WITH A RAISED MEDIAN AND THEN STRUCK A TREE. AS A RESULT OF THE COLLISION, THE FRONT SEAT PASSENGER SUSTAINED FATAL INJURIES AND DIED AFTER BEING TRANSPORTED TO THE HOSPITAL. THE DRIVER AND THE REAR SEAT PASSENGER WERE TRANSPORTED TO THE HOSPITAL AS WELL. THE REAR PASSENGER SUSTAINED SERIOUS INJURIES AND THE DRIVER SUSTAINED MINOR INJURIES. ACCORDING TO THE POLICE REPORT, THE DRIVER'S SEATBELT WAS ENTERED AND LOCKED INDICATING IT WAS WORN AT THE TIME OF THE COLLISION. THE DRIVER'S SEATBACK WAS PUSHED FORWARD ON THE RIGHT SIDE BUT RECLINED. THE DAMAGE TO THE REAR OF THE DRIVER'S SEAT WAS CONSISTENT WITH AN UNRESTRAINED PASSENGER IN THE REAR STRIKING THE SEAT UPON IMPACT. THE FRONT SEAT PASSENGER WAS NOT WEARING A SEATBELT. THE DRIVER WAS FOUND TO HAVE AN INSTRUCTION PERMIT ONLY AND NO OTHER OCCUPANT IN THE VEHICLE HAD A VALID DRIVER'S LICENSE. ACCORDING TO THE CRASH NARRATIVES, THE ESTIMATED SPEED UPON IMPACT WAS 46 MPH ONE SECOND PRIOR TO THE COLLISION. PRIOR TO THE COLLISION THE VEHICLE EXPERIENCED A 49 MILE PER HOUR MAXIMUM CHANGE IN VELOCITY. AN IMPACT SPEED OF JUST OVER 50 MILES PER HOUR WAS DETERMINED AFTER A RECONSTRUCTION OF THE CRASH. THERE WAS DAMAGE TO THE FRONT END, WINDSHIELD AND RIGHT DOOR. IT WAS NOTED THAT THERE WAS NO EVIDENCE OF BRAKING BEFORE THE COLLISION. THERE WAS NO EVIDENCE AT THE SCENE THAT INDICATED ERRATIC STEERING OR EVASIVE MANEUVERING PRIOR TO THE COLLISION. THE WEATHER WAS REPORTED AS CLEAR AND DRY. THERE WERE STREET LIGHTS PRESENT. AS NOTED IN THE CRASH REPORT, THE FRONT PASSENGER AIRBAG DID NOT DEPLOY HOWEVER THE AIRBAG HOUSING WAS AJAR. THE DRIVER SIDE AIRBAG DID DEPLOY. AS NOTED IN THE DOCUMENTATION, THE VEHICLE WAS NOT EQUIPPED WITH SIDE IMPACT CURTAINS. ACCORDING TO THE CRASH NARRATIVES, THE OWNER OF THE VEHICLE RECEIVED A RECALL NOTICE BUT HAD NOT YET TAKEN THE VEHICLE TO HAVE THE REPAIRS DONE. THE RECALL CALLED FOR ENERGY ABSORBENT MATERIAL TO BE PLACED IN THE VEHICLE FOR INCREASED OCCUPANT SAFETY. THE ALLEGED DEFECTS OUTLINED IN THE LAWSUIT DOCUMENTATION WERE AS FOLLOWS: THE VEHICLE NOT BEING CRASHWORTHY, DEFECTIVE FRONT AIRBAG SYSTEM AS IT RELATES TO NOT INCLUDING AN ADEQUATE WARNING SYSTEM PLACED IN AN APPROPRIATE AND NECESSARY LOCATION TO ALERT A FRONT SEAT PASSENGER AND OTHER DEFECTS RELATED TO MECHANICAL AND OR ELECTRICAL ISSUES. *TGW

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Avenue SE
Washington, DC 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

September 20, 2012

Ms. Carmen Benavides
General Motors Corp.
Mail Code 480-210-2V1
30001 Van Dyke
Warren, MI 48090

NVS-217kb
DI12-064

Dear Ms. Benavides:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors Corp. (GM) in its light early warning report from 2nd quarter of 2012. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 14, 44, 45, 46, 53, 58, 60, 66, 70, 79, 86, 98, 99, 100, 116, 131, 145, 146, 162, 163, 167, 169, 180, 182, 186, 188, 191, 193, 203, 226, 228, 232, 233, 234, 251, 252, 268, 271, 274, 295, 305, 315, 316, 318, 319, 330, 331, 334, 336, 337, 339, 340, 373, 374, 375, 408, 411, 417, 421, 422, 423, 424, 427, 481, 484	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the above table.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.



Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: “Document(s)” is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM’s custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM’s response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of any related Police Accident Report that is in your possession.
3. At your option, provide GM’s assessment of the circumstances that led to the incident including GM’s analysis of the claim and/or notice regarding allegations of a defect.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590. GM is required to submit two copies of the documents containing allegedly confidential information (except only one copy of blueprints) and one copy of the documents from which information claimed to be confidential has been deleted. Please remember that the words “CONFIDENTIAL BUSINESS INFORMATION”

must appear at the top of each page containing information claimed to be confidential, and the information must be clearly identified in accordance with 5 U.S.C. § 512.6. If you submit a request for confidentiality for all or part of your response to this letter, that is in an electronic format (e.g., CD-ROM), your request and associated submission must conform to the new requirements in NHTSA's Confidential Business Information Rule regarding submissions in electronic formats (49CFR 512.(c)). See Federal Register, volume 72, page 59434 (October 19, 2007).

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **October 19, 2012**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-7028, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,

A handwritten signature in dark ink, appearing to read "Leo Yon", written in a cursive style.

Leo Yon, Acting Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS LLC
Global Interior and Safety Center

October 25, 2012

OCT 26 2012

Ms. Christina Morgan, Chief
Early Warning Division, NVS-217
Office of Defects Investigation
National Highway Traffic Safety Administration
1200 New Jersey Ave, SE
Washington, DC 20590

NVS-217kb
DI12-064

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated September 20, 2012, regarding certain death and injury incidents reported by GM in its light vehicle early warning report from the 2nd quarter of 2012.

GM's response is comprised of 65 disks for the incidents that are the subject of DI12-064.

Attachment "A" includes instructions for navigating the disk. Each disk, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 14 377367302-742227 and 2006 BUICK LUCERNE. When the disk is launched, this identification number appears again along with all of the documents on the disk (including photographs and videos, if applicable) listed under "Filename". The first document listed under Filename is an index with the Request and Responses, e.g., identified as 14 377367302-742227_00_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the Inquiry and Response in
the index for the disk are as follows:

DI12-064
14 377367302-742227
2006 BUICK LUCERNE

Request for Information:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See attached document.



2. Provide a copy of the Police Accident Report.

Response: See attached documents and photographs.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

14 377367302-742227_01_001- is the first document responsive to Inquiry no.1.

14 377367302-742227_02_001- is the first document responsive to Inquiry no. 2.

Your inquiries and our corresponding replies are as follows:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See attached document.

The table below lists the incident that is the subject of DI12-064, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR) or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim". PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice". Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further.

(65 Vehicles from the Light Vehicle Template)		
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
14	1G4HE57Y66U [REDACTED]	NISM
44	1G6DE5E57C0 [REDACTED]	NISM
45	1G6DS5E38C0 [REDACTED]	NISM
46	1G6DV8EP1C0 [REDACTED]	NISM
53	1G6KD5E69BU [REDACTED]	LIT
58	1GYUCBEF0AR [REDACTED]	NISM
60	1GYS4BEF4CR [REDACTED]	NISM
66	3GYFNAEY8AS [REDACTED]	NISM
70	3GYFNBE35CS [REDACTED]	NISM
79	KL1TD66656B [REDACTED]	NISM
86	KL1TD5DE3AB [REDACTED]	NISM
98	UNKNOWN	NISM
99	2G1FC1E31C9 [REDACTED]	NISM
100	3GNAL2EK5CS [REDACTED]	NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
116	1G1AK15F767 [REDACTED]	LIT
131	1G1AE5F55A7 [REDACTED]	NISM
145	1GCDSCFE4C8 [REDACTED]	NISM
146	1GCESCF91C8 [REDACTED]	NISM
162	1G1PJ5SC9C7 [REDACTED]	NISM
163	1G1PF5SC3C7 [REDACTED]	NISM
167	1G1PF5SC8C7 [REDACTED]	NISM
169	1G1PE5SC8C7 [REDACTED]	NISM
180	2CNDL33F696 [REDACTED]	LIT
182	2CNFLEEW6A6 [REDACTED]	NISM
186	2GNFLEEK7C6 [REDACTED]	NISM
188	2GNALBEK2C1 [REDACTED]	NISM
191	2GNALPEK3C6 [REDACTED]	PAR
193	1GCSGAFX4C1 [REDACTED]	NISM
203	3GNBAAFW7BS [REDACTED]	NISM
226	2G1WG5EK4B1 [REDACTED]	RUMOR
228	2G1WF5EK7B1 [REDACTED]	NISM
232	2G1WG5E33C1 [REDACTED]	NISM
233	2G1WG5E32C1 [REDACTED]	NISM
234	2G1WG5E36C1 [REDACTED]	NISM
251	1G1ZJ577X8F [REDACTED]	NISM
252	1G1ZJ57B484 [REDACTED]	NISM
268	1G1ZC5E11BF [REDACTED]	NISM
271	1G1ZG5E76CF [REDACTED]	NISM
274	1G1ZC5E07CF [REDACTED]	NISM
295	3GCEC13C18G [REDACTED]	NISM
305	1GCNCPEX1CZ [REDACTED]	NISM
315	1G1JC5SH4C4 [REDACTED]	NISM
316	1G1JC5SH4C4 [REDACTED]	NISM
318	1G1JA5SH3C4 [REDACTED]	NISM
319	1G1JC5SH6C4 [REDACTED]	NISM
330	1GNFC13047R [REDACTED]	NISM
331	1GNFK13067R [REDACTED]	NISM
334	1GNFC13C98R [REDACTED]	NISM
336	UNKNOWN	RUMOR
337	1GNLC2E04BR [REDACTED]	NISM
339	UNKNOWN	NISM
340	1GNSCBE04CR [REDACTED]	NISM
373	1G1RD6E47BU [REDACTED]	NISM
374	1G1RD6E43CU [REDACTED]	NISM
375	1GKER33767J [REDACTED]	NISM
408	3GTU2WE28BG [REDACTED]	NISM
411	1GTR2VE76CZ [REDACTED]	NISM
417	2CTFLXE5XB6 [REDACTED]	NISM
421	2GKALUEK8C6 [REDACTED]	NISM
422	2GKALUEK5C6 [REDACTED]	NISM
423	2GKALMEK4C6 [REDACTED]	NISM
424	2GKALSEK5C6 [REDACTED]	NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
427	1GKS17E04BR [REDACTED]	NISM
481	5GZCZ33D06S [REDACTED]	NISM
484	5GZCZ33Z97S [REDACTED]	NISM

2. Provide a copy of the Police Accident Report.

Response: If available, see attached document(s) and photograph(s) on the enclosed disk(s).

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, photographs, reports and evaluations by attorneys (and by consultants, claims analysts, investigators and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,



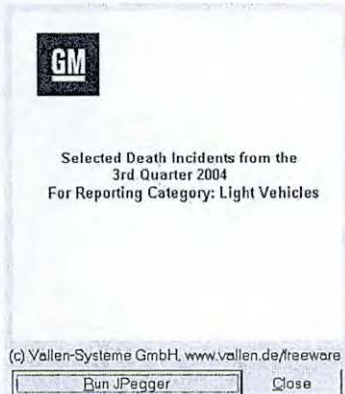
M. Carmen Benavides, Director
Product Investigations and Safety Regulations

Enclosures: 65 Disks
Attachment A

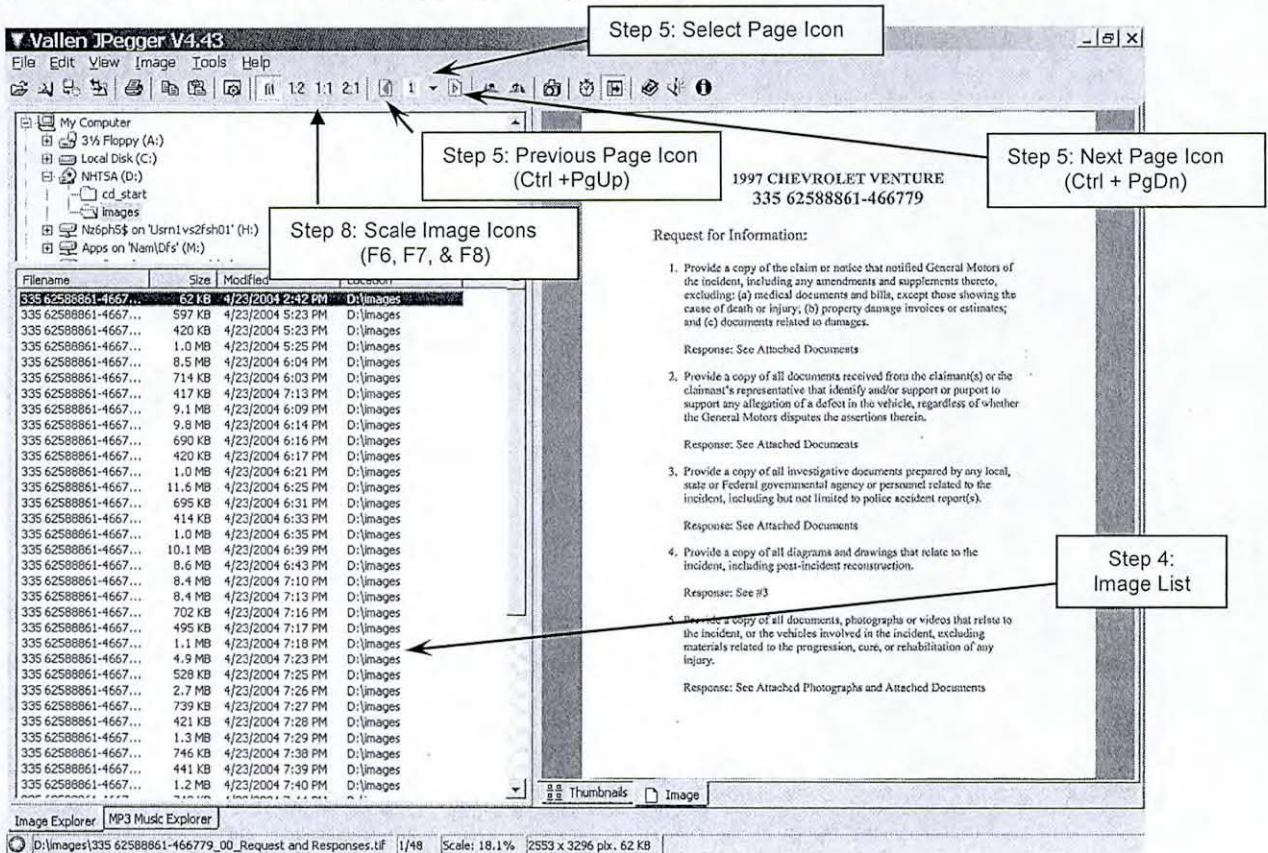
Attachment A

Instructions for using Disk Viewer

1. Insert the disk into the disk ROM drive; the disk will open automatically.
2. Click the "Run JPepper" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



8. If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7** and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

ATTORNEY OR PARTY WITHOUT ATTORNEY NAME, WITH BAR NUMBER, AND ADDRESS ERIC D. PARIS, ESQ., S/B# 147836 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES 281 S. THOMAS STREET SUITE 403 POMONA, CALIFORNIA 91766 TELEPHONE NO: 909-469-5127 FACHS: 909-469-5126 ATTACHED TO THIS: PLAINTIFF'S SUPERIOR COURT OF THE STATE OF CALIFORNIA INDO COURT		982.2(b)(1) FOR COURT USE ONLY			
CASE NAME: CARDONA V. CHEVROLET		CASE NUMBER: ASSIGNED JUDGE:			
<table border="1" style="width: 100%; border-collapse: collapse;"> <tr> <td style="width: 35%; padding: 5px; vertical-align: top;"> CIVIL CASE COVER SHEET ☐ Limited ☒ Unlimited </td> <td style="width: 65%; padding: 5px; vertical-align: top;"> Complex Case Designation ☐ Counter ☐ Jointer Filed with first appearance by defendant (Cal. Rules of Court, rule 1811) </td> </tr> </table>			CIVIL CASE COVER SHEET ☐ Limited ☒ Unlimited	Complex Case Designation ☐ Counter ☐ Jointer Filed with first appearance by defendant (Cal. Rules of Court, rule 1811)	
CIVIL CASE COVER SHEET ☐ Limited ☒ Unlimited	Complex Case Designation ☐ Counter ☐ Jointer Filed with first appearance by defendant (Cal. Rules of Court, rule 1811)				
Please complete all five (5) items below. <table style="width: 100%;"> <tr> <td style="width: 60%; vertical-align: top;"> 1. Check one box below for the case type that best describes this case: ☒ Auto Tort ☒ Auto (22) Other PFDOWN (Personal Injury/Property Damage/Wrongful Death) Tort ☐ Asbestos (4) ☐ Product liability (24) ☐ Medical malpractice (45) Other PFDOWN (23) Non-PFDOWN (other) Tort ☐ Business tort/other business practice (37) ☐ Charities (e.g., discrimination, false arrest) (33) ☐ Defamation (e.g., slander, libel) (33) ☐ Fraud (18) ☐ Intellectual property (15) ☐ Professional negligence (e.g., legal malpractice) (25) ☐ Other non-PFDOWN tort (33) Employment ☐ Wrongful termination (36) </td> <td style="width: 40%; vertical-align: top;"> ☐ Other employment (15) Contract ☐ Breach of contract/arranty (30) ☐ Collections (e.g., money owed, open book accounts) (30) ☐ Insurance coverage (18) ☐ Other contract (37) Real Property ☐ Ordinate domestic/inverse condemnation (14) ☐ Wrongful eviction (32) ☐ Other real property (e.g., quiet title) (32) Unintentional Tort ☐ Commercial (31) ☐ Recreational (32) ☐ Drugs (33) ☐ Alcohol/Intoxication ☐ Assault/tortious (30) ☐ Pollution or arbitration award (11) </td> </tr> </table> 2. This case ☒ is ☐ is not complex under rule 1800 of the California Rules requiring exceptional judicial management. a. ☒ Large number of separately represented parties d. ☐ Large number of parties b. ☒ Extensive motion practice raising difficult or novel issues that will be time-consuming to resolve e. ☐ Coordination and in other courts c. ☒ Substantial amount of documentary evidence f. ☐ Substantial post 3. Type of remedies sought (check all that apply): a. ☒ Monetary b. ☐ Nonmonetary, declaratory or injunctive relief c. ☐ 4. Number of causes of action: FIVE 5. This case ☐ is ☒ is not a class action suit. DATE: JULY 3, 2003 ERIC D. PARIS, ESQ., S/B# 147836 (PRINT OR PRINT NAME)			1. Check one box below for the case type that best describes this case: ☒ Auto Tort ☒ Auto (22) Other PFDOWN (Personal Injury/Property Damage/Wrongful Death) Tort ☐ Asbestos (4) ☐ Product liability (24) ☐ Medical malpractice (45) Other PFDOWN (23) Non-PFDOWN (other) Tort ☐ Business tort/other business practice (37) ☐ Charities (e.g., discrimination, false arrest) (33) ☐ Defamation (e.g., slander, libel) (33) ☐ Fraud (18) ☐ Intellectual property (15) ☐ Professional negligence (e.g., legal malpractice) (25) ☐ Other non-PFDOWN tort (33) Employment ☐ Wrongful termination (36)	☐ Other employment (15) Contract ☐ Breach of contract/arranty (30) ☐ Collections (e.g., money owed, open book accounts) (30) ☐ Insurance coverage (18) ☐ Other contract (37) Real Property ☐ Ordinate domestic/inverse condemnation (14) ☐ Wrongful eviction (32) ☐ Other real property (e.g., quiet title) (32) Unintentional Tort ☐ Commercial (31) ☐ Recreational (32) ☐ Drugs (33) ☐ Alcohol/Intoxication ☐ Assault/tortious (30) ☐ Pollution or arbitration award (11)	☐ Writ of mandate (22) ☐ Other judicial review (39) Previously Complex Civil Litigation (Cal. Rules of Court, rules 1800-1812) ☐ Antitrust/Trade regulation (32) ☐ Construction defect (14) ☐ Claims involving minors and kids Next Image Previous Image Next page Ctrl+PgDn Previous page Ctrl+PgUp Full screen image Ctrl+F11 Slide show F10 Fit Scale to fit F5 1:2 Scale 50% F6 1:1 Scale 100% F7 2:1 Scale 200% F8 Rotate left Ctrl+Alt+L Rotate right Ctrl+Alt+R Rotate by 180° Copy to clipboard Copy file to... Ctrl+C Move file to... Ctrl+X Rename file... F2 Delete file... Del EXIF Image Information... Ctrl+H
1. Check one box below for the case type that best describes this case: ☒ Auto Tort ☒ Auto (22) Other PFDOWN (Personal Injury/Property Damage/Wrongful Death) Tort ☐ Asbestos (4) ☐ Product liability (24) ☐ Medical malpractice (45) Other PFDOWN (23) Non-PFDOWN (other) Tort ☐ Business tort/other business practice (37) ☐ Charities (e.g., discrimination, false arrest) (33) ☐ Defamation (e.g., slander, libel) (33) ☐ Fraud (18) ☐ Intellectual property (15) ☐ Professional negligence (e.g., legal malpractice) (25) ☐ Other non-PFDOWN tort (33) Employment ☐ Wrongful termination (36)	☐ Other employment (15) Contract ☐ Breach of contract/arranty (30) ☐ Collections (e.g., money owed, open book accounts) (30) ☐ Insurance coverage (18) ☐ Other contract (37) Real Property ☐ Ordinate domestic/inverse condemnation (14) ☐ Wrongful eviction (32) ☐ Other real property (e.g., quiet title) (32) Unintentional Tort ☐ Commercial (31) ☐ Recreational (32) ☐ Drugs (33) ☐ Alcohol/Intoxication ☐ Assault/tortious (30) ☐ Pollution or arbitration award (11)				

Form Approved for Mandatory Use
Judicial Council of California
9/02/2003 (Rev. January 1, 2002)

CIVIL CASE COVER SHEET

Step 7: Next File (Image)

Step 7: Next Page

Step 8: Scale Image

Step 7: Image Properties

DI12-064
116 377368128 – 744264
2006 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document and Photographs.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

Larry E. Coben (SBN 15673)
Jo Ann Niemi (SBN 020873)
ANAPOL SCHWARTZ
8700 E. Vista Bonita Drive, Suite 228
Scottsdale, Arizona 85255
Telephone: (480) 515-4745
Facsimile: (480) 515-4744
Minute Entries: ME@anapolschwartz.com

Attorneys for Plaintiffs

COPY



JUN 19 2012
MICHAEL K. JEANES, CLERK
W. POWLEY
DEPUTY CLERK

IN THE SUPERIOR COURT OF THE STATE OF ARIZONA
IN AND FOR THE COUNTY OF MARICOPA

JOSIE GAY, in her own right and on behalf
of all statutory beneficiaries, and as Personal
Representative for the Estate of **RICKY**
MAURICE ANDERSON, deceased,

Plaintiffs,

vs.

GENERAL MOTORS LLC, a Delaware
Corporation; **JOHN MIRANDA and JANE**
DOE MIRANDA, husband and wife; **SILVIA**
SANCHEZ and JOHN DOE SANCHEZ,
husband and wife; **JOHN AND JANE DOES**
1-5; BLACK AND WHITE PARTNERSHIPS
1-5; XYZ CORPORATIONS 1-5,

Defendants.

Case No. CV **2012-054208**

COMPLAINT

(Tort Motor Vehicle; Products Liability,
Strict Liability; Negligence, Gross
Negligence; Wrongful Death, Survival
Action)

JURY TRIAL DEMANDED

Plaintiffs, by and through their undersigned counsel, and for her claims against the
Defendants, alleges as follows:

ALLEGATIONS COMMON TO ALL COUNTS

1. Plaintiff, **Josie Gay**, the surviving mother of **Ricky Maurice Anderson**, brings
these wrongful death and survival actions pursuant to applicable law as the statutory Plaintiff on

1 her own behalf and on behalf of all statutory beneficiaries who may wish to participate in this
2 action, pursuant to A.R.S. §12-611 et. seq. (collectively referred to as "Plaintiffs"). Plaintiff
3 **Josie Gay** is a resident of the State of Arizona.

4 2. Plaintiff **Josie Gay** is the duly appointed Personal Representative of the Estate of
5 **Ricky Maurice Anderson** and brings a survival claim on behalf of the Estate pursuant to A.R.S.
6 §14-3110 and §14-3715(22).

7 3. Defendant General Motors LLC (hereinafter referred to as "GM") is now, and has
8 been at all relevant times, a Delaware Corporation authorized to do business in the United States,
9 with its principal offices in Detroit, Michigan and this Defendant has conducted substantial and
10 continuous business in the State of. GM is subject to the jurisdiction of and venue in this Court
11 upon service of process.

12 4. GM was at all relevant times in the business of designing, testing, manufacturing,
13 supplying, marketing and selling motor vehicles, including a 2006 Chevrolet Cobalt, VIN
14 1GAK15F767**845339** (referred to herein as the "Cobalt") which is the subject of this lawsuit.

15 5. GM has assumed legal liability for all motor vehicles products previously sold by
16 General Motors Corporation, including the 2006 Chevrolet Cobalt, under circumstances like
17 those existing here -- e.g., when the accident occurred after the bankruptcy closing date.

18 6. Defendant, **John Miranda**, was at all times relevant hereto a resident of the State
19 of Arizona, Maricopa County. The defendant **Miranda** was operating the Cobalt at the time of
20 the accident described below. **Jane Doe Miranda** is sued fictitiously as a party who may have
21 liability to Plaintiffs as alleged herein due to her status as spouse of Defendant **John Miranda**.
22 Once the identity of **Jane Doe Miranda** is known, Plaintiffs will seek leave to amend and add the
23 true name of said Defendant.

24 7. Upon information and belief, defendant **John Miranda** resides at **3125 N. 46th**
25 **Drive**, Phoenix, Maricopa County, Arizona **85031**, and has been at all relevant times to this
26 action a resident of Maricopa County, Arizona, and resides with his parents, **Silvia Sanchez**, and

1 John Doe Sanchez. John Doe Sanchez is sued fictitiously as a party who may have liability to
2 Plaintiffs as alleged herein due to his status as spouse of Defendant Silvia Sanchez. Once the
3 identity of John Doe Sanchez is known, Plaintiffs will seek leave to amend and add the true
4 name of said Defendant.

5 8. Upon information and belief, Silvia Sanchez and John Doe Sanchez reside at 3125 N.
6 46th Drive, Phoenix, Maricopa County, Arizona 85031, and have been at all relevant times to
7 this action residents of Maricopa County, Arizona.

8 9. Upon information and belief, defendants Silvia Sanchez and John Doe Sanchez
9 were, at all times material hereto, the owners of the Cobalt and had furnished the Cobalt which
10 was being driven by defendant John Miranda at the time of the accident which is the subject of
11 this lawsuit.

12 10. Upon information and belief, Silvia Sanchez and John Doe Sanchez maintained
13 the Cobalt for the use, pleasure and convenience of the family.

14 11. Defendant John Miranda was driving the Cobalt with the implied or express
15 consent of Silvia Sanchez and/or John Doe Sanchez.

16 12. At all times herein mentioned, John and Jane Does, ABC Partnerships, and XYZ
17 Corporations 1 through 5 were individuals or business organizations, the exact nature of which
18 are unknown to Plaintiffs at this time and Plaintiffs pray leave to amend this Complaint to show
19 their true names and capacities when the same have been finally ascertained. Plaintiffs are
20 informed and believe, and upon such information and belief allege, that each of these presently
21 unknown Defendants is negligently or otherwise legally responsible in some manner for the
22 events and happenings herein referred to and negligently or otherwise caused injury and damage
23 thereby to Plaintiffs, as hereinafter alleged.

24 13. The jurisdictional minimum for filing this action is satisfied and venue in this
25 Court is proper.

26 ///

1 **FACTUAL ALLEGATIONS**

2 14. On September 26, 2010, defendant John Miranda was driving the Cobalt heading
3 eastbound on Bethany Home Road in Phoenix, Maricopa County, Arizona with his passengers,
4 including the decedent Ricky Maurice Anderson who was the front seat passenger.

5 15. While driving along Bethany Home Road at approximately 41st Avenue, for an
6 unknown reason the Cobalt left the roadway and struck a tree head-on.

7 16. While the Cobalt was equipped with front air bags intended to provide occupants
8 with protection in the event of frontal collisions, the passenger side air bag failed to deploy.

9 17. As a result of the misconduct described below, the collision and the defective
10 design of the Cobalt including but not limited to the failure of the passenger side air bag to
11 deploy, Ricky Maurice Anderson suffered catastrophic injuries which resulted in his death.

12 18. As a direct and proximate result of the accident, the negligence and willful
13 misconduct of the Defendants, and each of them, and product defects as described below, Ricky
14 Maurice Anderson sustained fatal injuries and his survivors and his Estate have suffered
15 damages described below.

16 **COUNT ONE**

17 **(Strict Liability – Defendant GM)**

18 19. Plaintiffs restate and incorporate the preceding paragraphs as fully as though set
19 forth herein.

20 20. Defendant GM is strictly liable to the Plaintiff for the death of her son and for the
21 damages suffered and to be suffered in the future by the Decedent's survivors and his Estate, for
22 the following reasons:

- 23 a. The Cobalt was not crashworthy;
24 b. The front air bag system was defective in design and/or manufacture;
25 c. The air bag system was defective because, *inter alia*, it did not include an
26 adequate warning system placed in an appropriate and necessary location to

1 alert a front seat passenger when, because of mechanical or electrical issues,
2 the passenger side air bag will not deploy in a foreseeable collision;

- 3 d. The Cobalt's electronic system was defective because, *inter alia*, it failed to
4 include a necessary safety component that would provide an adequate and
5 reasonable notice/warning to front seat passengers that the front air bag
6 system was mechanically or electronically inactive, or may not work properly
7 and/or is incapable of deployment in a foreseeable crash;
- 8 e. Failing to include a safe air bag system that would provide necessary and
9 appropriate warnings if and when any foreseen events transpire to cause the
10 airbag system to be incorrectly or erroneously suppressed;
- 11 f. The airbag system was defective because it malfunctioned by failing to deploy
12 under collision circumstances warranting deployment;
- 13 g. GM failed to reasonably and properly test and/or analyze the testing of the
14 Cobalt under reasonably foreseeable crash circumstances; and

15 21. As a direct result of the matters alleged above, the Plaintiffs are entitled to rely
16 upon the doctrine of strict liability in tort for recovery against defendant GM.

17 22. As a direct and proximate result of the aforesaid actions of defendant GM,
18 Plaintiff's decedent died, causing Plaintiff's wrongful death damages under A.R.S. §12-611, *et*
19 *seq.*, including but not limited to severe and permanent physical, mental and emotional injuries
20 and also causing Plaintiff Estate of **Ricky Maurice Anderson** compensable damages under A.R.S.
21 §14-3110.

22 COUNT TWO

23 (Negligence, Gross Negligence, Wanton Disregard – Defendant GM)

24 23. Plaintiffs restate and incorporate the preceding paragraphs as fully as though set
25 forth herein.

26 24. GM is further liable to the Plaintiffs for negligence, gross negligence, wanton

1 disregard, and reckless disregard for the safety of others, including the decedent **Ricky Maurice**
2 **Anderson** other misconduct deduced before or at the time of trial, including but not limited to the
3 following:

- 4 a. withholding from use in the Cobalt a reasonably designed bag restraint
5 system;
- 6 b. failing to use due care in the design of the air bag system;
- 7 c. failing to include an adequate and necessary warnings system to alert front
8 passengers when an air bag component is non-functional;
- 9 d. installing an air bag system that was inadequately designed to forestall or
10 preclude suppression of the air bag's deployment when accident
11 circumstances dictate that it deploy;
- 12 e. other conduct or misconduct constituting carelessness that led to the non-
13 deployment of the passenger side air bag in the Cobalt and/or failing to
14 properly warn the decedent of the suppression of the air bag.

15 25. As a result of the carelessness and negligence of defendant GM as described
16 above, the accident occurred and the Plaintiff's son suffered fatal injuries thereby warranting the
17 imposition of punitive damages.

18 26. As a result of GM's misconduct, **Ricky Anderson** died and the Plaintiff and the
19 Plaintiff Estate and survivors have suffered losses pursuant to both the Wrongful Death Act and
20 the Survival Act.

21 **COUNT THREE**

22 **NEGLIGENCE - DEFENDANTS **MIRANDA AND SANCHEZ****

23 27. Plaintiffs restate and incorporate the preceding paragraphs as fully as though set
24 forth herein.

25 28. Defendant **John Miranda** failed to exercise due care and failed to operate the
26 Cobalt in a safe manner so as to avoid injury to Plaintiff and the decedent.

29. Defendant John Miranda was careless in the operation of the Cobalt both generally and in the following respects:

- a. failing to maintain proper control;
- b. failing to prevent the vehicle from going off the road; and,
- c. other acts or omissions that constitute negligence.

30. Upon information and belief, defendants Silvia Sanchez and John Doe Sanchez furnished the Cobalt that defendant John Miranda was driving at the time of the subject incident.

31. Upon information and belief, at all times relevant to this action, defendant **John Miranda** was driving the Cobalt with the express or implied permission of his parents, defendants **Silvia Sanchez and John Doe Sanchez**, and for a family purpose.

32. As a result, defendants **Silvia Sanchez and John Doe Sanchez** are liable, pursuant to the family purpose doctrine, for the injuries in part sustained by the Plaintiff and decedent.

33. Defendants **Silvia Sanchez and John Doe Sanchez** failed to exercise due care to protect Plaintiffs from injury.

DAMAGES

34. This action is brought to recover all damages legally cognizable against each responsible defendant. To that end, the Plaintiffs seek recovery pursuant to the Arizona Wrongful Death and Survival Statutes and the case law which has interpreted those statutes. Damages include, but are not limited to the following:

- a. Damages for the past and future loss of love, care, society, affection and companionship;
- b. For all legally cognizable losses suffered or to be suffered by the Estate of the decedent and/or the decedent's next of kin, including the loss of earnings and the loss of the decedent's earnings capacity;
- c. For future losses and other intangible damages, including but not limited to the loss of life's pleasures;

- 1 d. For funeral expenses and the costs and expenses incurred in bringing this
2 action;
3 e. Punitive damages (against defendant GM only) allowed by law;
4 f. Any and all other losses and damages sustained by the Plaintiffs to which they
5 are legally entitled either by statute or by the common law; and
6 g. For such other, further and different relief as the court deems just and proper.

7 WHEREFORE, the damages claimed herein are in excess of any applicable arbitration
8 limits, and these damages are sought in addition to applicable and available interest and costs.

9 DATED this 18 day of June, 2012.

10 ANAPOL SCHWARTZ

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12 
13 _____
14 Larry E. Coben
15 JoAnn Niemi
16 *Attorneys for Plaintiffs*
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ARIZONA CRASH REPORT			REPORT ID												Agency Report Number																				
FATAL SUPPLEMENT POLICE ONLY—FORWARD COPY TO ADOT TRAFFIC RECORDS SECTION, 664R 208 S. 17TH AVE., PHOENIX, ARIZONA 85007-3233			YEAR	MONTH	DAY	HOUR	NCIC NO.				OFFICER ID NO.				2010-01363419																				
			1	0	0	9	2	8	0	3	5	4	0	7	2	3	0	5	0	7	9	1022226 Delayed Fatality													
V I C T I M	ADDRESS												CITY		STATE		ZIP																		
	[REDACTED]												PHOENIX		AZ		[REDACTED]																		
	SEX	WEIGHT		EYES	HEIGHT		HAIR		DATE OF BIRTH																										
	M	175		BROWN	505		BROWN		[REDACTED]																										
	VICTIM REMOVED TO ST. JOSEPH'S HOSPITAL												VICTIM REMOVED BY PHOENIX FIRE DEPT. RESCUE 18																						
	DECEASED AT SCENE												TRANSPORTED TO HOSPITAL						DATE OF DEATH		TIME OF DEATH														
	☐ YES ☒ NO												☒ YES ☐ NO						[REDACTED]		0432														
	MMDDYYYY																																		
	SAFETY DEVICE FAILURE												SAFETY DEVICE - IMPROPER USAGE						EJECTION (Eject) PATH																
	☒ 0 NOT APPLICABLE (SAFETY DEVICE WORKED) ☐ 1 LAP FAILED ☐ 2 SHOULDER FAILED ☐ 3 BOTH FAILED ☐ 4 CHILD SAFETY SEAT FAILED ☐ 5 CHILD BOOSTER SEAT FAILED ☐ 99 UNKNOWN												☐ 0 NOT APPLICABLE (Safety Device Properly Used) ☐ 1 LAP ☐ 2 SHOULDER ☐ 3 BOTH ☐ 4 CHILD SAFETY SEAT ☐ 5 CHILD BOOSTER SEAT ☐ 99 UNKNOWN						☒ 0 NOT APPLICABLE (NON-MOTORIST/NOT EJECTED) ☐ 1 THROUGH SIDE DOOR OPENING ☐ 2 THROUGH SIDE WINDOW ☐ 3 THROUGH WINDSHIELD ☐ 4 THROUGH BACK WINDOW ☐ 5 THROUGH BACK DOOR/ TAILGATE OPENING ☐ 6 THROUGH ROOF OPENING (sunroof; convertible top down) ☐ 7 Through ROOF (convertible top up) ☐ 8 OTHER PATH ☐ 99 UNKNOWN																
AIR BAG NOT AVAILABLE																																			
☐ 0 NOT APPLICABLE												☐ 1 PREVIOUSLY DEPLOYED - NOT REPLACED						☐ 2 DISABLED						☐ 3 REMOVED											
3 DRIVER												[REDACTED]						[REDACTED]																	
EXTRICATION (Ext) SUPPLEMENT												5 COMPLETED IF ANY DRIVER IS TESTED FOR ALCOHOL/DRUGS																							
UNIT #												DRIVER #						DRIVER #						DRIVER #											
☐ 0 NOT APPLICABLE (NON MOTORIST/NOT EXTRICATED) ☐ 1 BY AMBULANCE ATTENDANT ☐ 2 BY POLICE ☐ 3 BY FIRE DEPARTMENT ☐ 4 BY PASSENGER ☐ 87 OTHER ☐ 99 UNKNOWN												ALCOHOL TEST TYPE						ALCOHOL TEST RESULTS						ALCOHOL TEST TYPE						ALCOHOL TEST RESULTS					
												DRUG TEST TYPE						DRUG TEST RESULTS						DRUG TEST TYPE						DRUG TEST RESULTS					
MOTOR VEHICLE												UNDERRIDE/ OVERRIDE						FIRE OCCURRENCE																	
UNIT #												UNIT #						UNIT #																	
☐ 0 NOT APPLICABLE												☐ 0 NOT APPLICABLE						☐ 0 NOT APPLICABLE																	
UNDERRIDING A MOTOR VEHICLE IN-TRANSPORT												UNDERRIDING A MOTOR VEHICLE NOT IN-TRANSPORT						FIRE OCCURRED IN VEHICLE DURING CRASH																	
☐ 1 UNDERRIDE (COMPARTMENT INTRUSION) ☐ 2 UNDERRIDE (NO COMPARTMENT INTRUSION) ☐ 3 UNDERRIDE (COMPARTMENT INTRUSION UNKNOWN)												☐ 4 UNDERRIDE (COMPARTMENT INTRUSION) ☐ 5 UNDERRIDE (NO COMPARTMENT INTRUSION) ☐ 6 UNDERRIDE (COMPARTMENT INTRUSION UNKNOWN)						☐ 1 FIRE OCCURRED IN VEHICLE DURING CRASH																	
☐ 7 OVERRIDING A MOTOR VEHICLE IN-TRANSPORT ☐ 8 OVERRIDING A MOTOR VEHICLE NOT IN-TRANSPORT ☐ 9 THROUGH ROOF OPENING (sunroof) ☐ 99 UNKNOWN																																			
7 EMS												TIME EMS CALLED						TIME EMS ARRIVED						ARRIVAL TIME AT HOSPITAL											
												0354						0369						0428											
COMMENTS																																			
9 OFFICER'S NAME CLARK												SUPERVISOR'S SIGNATURE						AGENCY						DATE COMPLETED											
												[Signature]						PHOENIX PD						12082010											

01-2705 R06/2010

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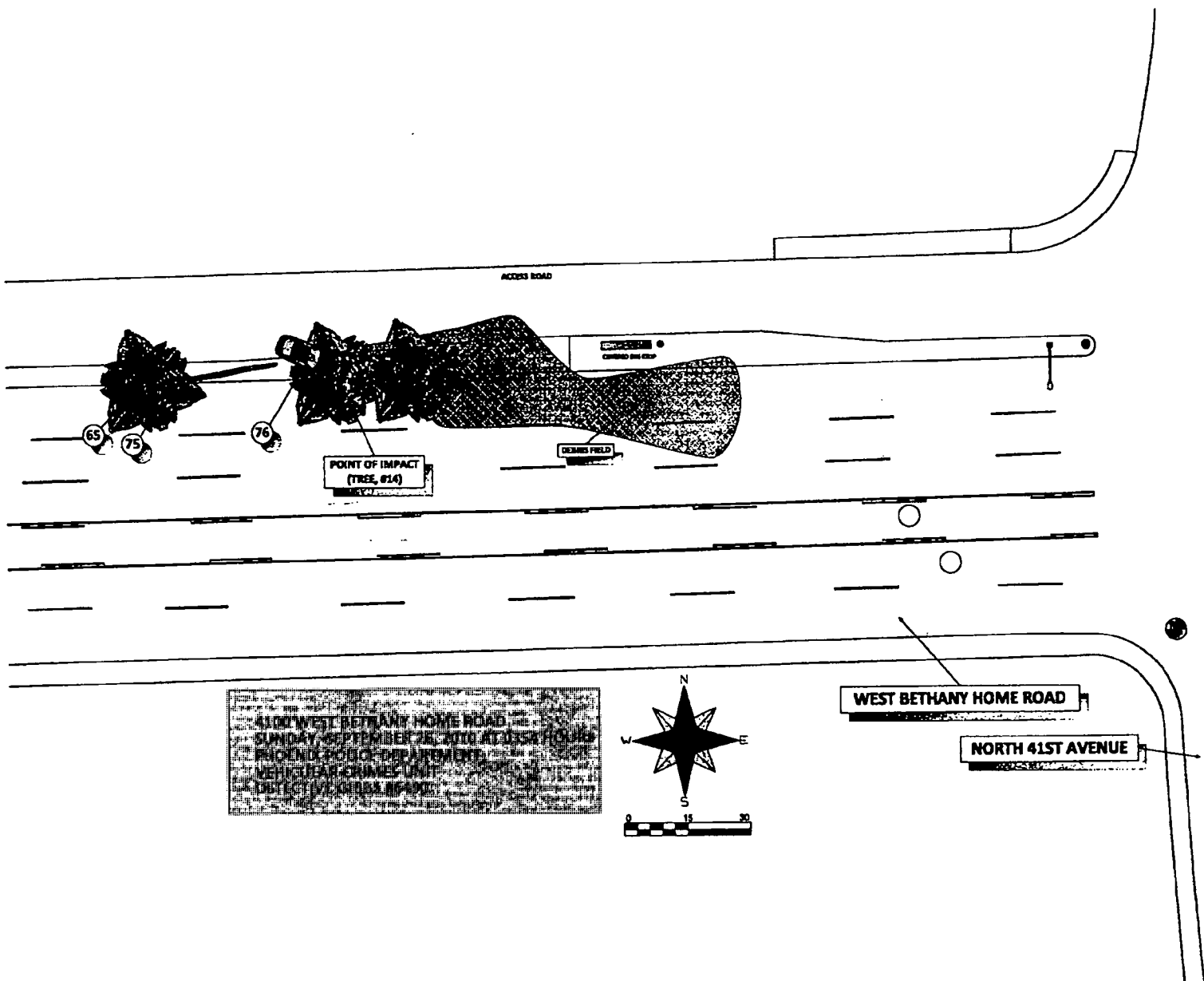
ARIZONA CRASH REPORT		REPORT ID												Agency Report Number				
1	CONTINUED POLICE ONLY—FORWARD COPY TO ADOT TRAFFIC RECORDS SECTION, 084R 208 S. 17TH AVE., PHOENIX, ARIZONA 85007-3233	YEAR	MONTH	DAY	HOUR			NCIC NO.			OFFICER ID NO.			2010-01383419 1022226				
		1	0	0	8	2	8	0	3	5	4	0	7		2	3	0	5

34	NARRATIVE	Describe what happened
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ON SEPTEMBER 28, 2010, AT APPROXIMATELY 0354 HOURS, DRIVER [REDACTED] WAS DRIVING HIS MOTHER'S CHEVROLET COBALT EASTBOUND IN THE AREA OF 4100 WEST BETHANY HOME ROAD, WHEN, FOR AN UNKNOWN REASON, THE VEHICLE DRIFTED ACROSS THE WESTBOUND LANES AND COLLIDED WITH A RAISED MEDIAN AND THEN A TREE. AS A RESULT OF THE COLLISION, THE FRONT SEAT PASSENGER SUSTAINED FATAL INJURIES AND DIED AFTER BEING TRANSPORTED TO THE HOSPITAL. THE DRIVER AND THE REAR SEAT PASSENGER WERE BOTH TRANSPORTED TO HOSPITAL AS WELL. THE PASSENGER WITH SERIOUS INJURIES AND THE DRIVER WITH MINOR INJURIES. [REDACTED] WAS FOUND TO HAVE AN INSTRUCTION PERMIT ONLY AND NO OTHER OCCUPANT IN THE VEHICLE HAD A VALID LICENSE.

ADDITIONAL PASSENGERS	Unit #	Seat Pos	DOB	IS	Name	Address	City	State	Zip Code	Telephone No.	D.O.B./Age	Sex

ADDITIONAL WITNESSES	Name	Address	City	State	Zip Code	Telephone Number	D.O.B./Age



1022226

1022226



Phoenix Police Department

Measurement Data Log

File Number	2010-01363419	Scene Measured By	Detective Gibbs
Incident Date/Time	26-Sep-2010 03:54 AM	ID Number (measured by)	6490
Incident Location	4100 West Bethany Home Road	Scene Assisted By	
Date Measured On	26-Sep-2010	ID Number (assisted by)	
Weather Description	Clear	Reference Point Description	S/W/C (prolongation)
Road Description	Asphalt, straight	Secondary Reference Point	Manhole Covers
		Visibility Description	Good

Narrative

Point	X	Y	Z	Description	Notes
1	0.0000	0.0000	0.0000	REFERENCE POINT	
2	-175.5732	13.5348	5.0500	TOTAL STATION	
3	-62.9389	26.9080	0.4222	MANHOLE COVER	
4	-53.2871	15.8909	0.0788	MANHOLE COVER	
5	-372.4103	8.0826	-0.4570	MANHOLE COVER	
6	-403.1984	57.0011	0.5000	LIGHTPOLE	
7	-29.1603	66.2620	6.9755	LIGHTPOLE	
8	-20.4425	66.4245	6.9325	STOP SIGN	
9	-123.5289	66.1698	3.4223	BUS STOP	
10	-123.5586	67.9830	3.3941	BUS STOP	
11	-135.1819	65.9741	3.5942	BUS STOP	
12	-139.8188	61.9720	3.7261	TREE	
13	-180.1001	61.8112	3.9837	TREE	
14	-198.8819	61.2075	3.8833	TREE (POINT OF IMPACT)	
15	-243.9988	59.8556	3.2330	TREE	
16	-350.3909	57.5991	3.8508	TREE	
17	-388.3571	57.1348	3.6053	TREE	
18	-429.9587	56.1425	0.4841	TREE	
19	-468.9222	-10.6887	0.0000	CURB	
20	-206.3489	-4.5810	0.0000	CURB	
21	-32.5978	-0.5379	0.0000	CURB	
22	-23.1034	63.7217	0.0000	CURB	
23	-188.5631	59.9100	0.0000	CURB	
24	-307.1495	57.1430	0.0000	CURB	
25	-448.6018	53.8380	0.0000	CURB	

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Point	X	Y	Z	Description	Notes
25	-448.8018	53.8380	0.0000	CURB	
26	-307.1453	81.4832	0.0000	CURB	
27	-230.0724	83.2334	0.0000	CURB	
28	-128.6441	85.5708	0.0000	CURB	
29	-15.3357	22.0088	0.0000	TWO WAY LEFT TURN LANE	
30	-496.7148	10.7900	0.0000	TWO WAY LEFT TURN LANE	
31	-269.5758	25.7719	0.0000	TWO WAY LEFT TURN LANE	
32	-58.6365	30.6389	0.0000	TWO WAY LEFT TURN LANE	
33	-85.5818	10.2815	0.0000	LL	
34	-80.8901	9.9529	0.0000	LL	
35	-104.3401	9.3520	0.0000	LL	
36	-119.5868	9.0308	0.0000	LL	
37	-142.2123	8.4512	0.0000	LL	
38	-157.8795	8.1651	0.0000	LL	
39	-144.9752	48.7555	0.0000	LL	
40	-160.3728	48.4184	0.0000	LL	
41	-144.1010	39.0021	0.0000	LL	
42	-159.5780	38.6401	0.0000	LL	
43	-181.9031	47.9485	0.0000	LL	
44	-197.5081	47.5487	0.0000	LL	
45	-197.6038	37.7775	0.0000	LL	
46	-181.8892	38.1279	0.0000	LL	
47	-220.3815	47.1001	0.0000	LL	
48	-236.4581	46.7550	0.0000	LL	
49	-221.7436	37.2140	0.0000	LL	
50	-236.9341	38.8874	0.0000	LL	
51	-258.2482	48.2020	0.0000	LL	
52	-271.4774	45.8444	0.0000	LL	
53	-257.9985	36.3390	0.0000	LL	
54	-273.4786	35.9811	0.0000	LL	
55	-20.5165	63.7828	0.0000	CURB	
56	-18.2389	66.1357	0.0000	CURB	
57	-20.5149	88.4480	0.0000	CURB	
58	-44.6351	67.9453	0.0000	CURB	
59	-68.3389	67.3714	0.0000	CURB	
60	-97.5998	70.0375	0.0000	CURB	
61	-157.8724	68.7966	0.0000	CURB	
62	-177.8022	66.8835	0.0000	CURB	
63	-222.0699	63.8277	0.0000	CURB	
64	-294.5391	62.1007	0.0000	CURB	
65	-244.9442	58.3615	6.0295	LEFT REAR TIRE MARK (CURB STRIKE) - ORANGE CONES	
66	-239.9155	58.0027	6.5146	LEFT REAR TIRE MARK	
67	-233.7428	59.7423	6.3388	LEFT REAR TIRE MARK	

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Point	X	Y	Z	Description	Notes
67	-233.7426	59.7423	6.3388	LEFT REAR TIRE MARK	
68	-225.9887	61.0634	6.3884	LEFT REAR TIRE MARK	
69	-218.3409	62.4645	6.3914	LEFT REAR TIRE MARK	
70	-213.2334	62.8918	6.4634	LEFT REAR TIRE MARK	
71	-213.4871	62.5705	6.4740	LEFT FRONT TIRE MARK - BLUE CONES	
72	-218.3597	61.7819	6.3830	LEFT FRONT TIRE MARK	
73	-225.9162	60.4102	6.3558	LEFT FRONT TIRE MARK	
74	-233.8399	59.1297	6.4914	LEFT FRONT TIRE MARK	
75	-237.6125	58.7811	6.5024	LEFT FRONT TIRE MARK (CURB STRIKE)	
76	-207.9037	59.8010	6.5740	RIGHT FRONT TIRE MARK (CURB STRIKE) - YELLOW CONES	
77	-205.7013	59.7620	6.5907	RIGHT FRONT TIRE MARK	
78	-203.1555	60.4006	6.5204	RIGHT FRONT TIRE MARK	
79	-203.2277	61.2856	6.5046	RIGHT FRONT TIRE POR	
80	-210.3906	63.8430	6.5533	RIGHT REAR TIRE POR	
81	-208.1443	69.3103	6.2191	LEFT REAR TIRE POR	
82	-200.0288	65.7842	6.1454	LEFT FRONT TIRE POR	
83	-194.7082	66.5777	6.1699	DEBRIS	
84	-178.0716	57.7805	6.2473	DEBRIS	
85	-173.7252	48.5628	6.3263	DEBRIS	
86	-142.3882	48.1727	6.3274	DEBRIS	
87	-108.0998	40.8966	6.5404	DEBRIS	
88	-102.4094	51.6345	6.3499	DEBRIS	
89	-105.6659	64.1181	6.4453	DEBRIS	
90	-139.1853	59.4387	6.2443	DEBRIS	
91	-155.1095	73.4199	6.4280	DEBRIS	
92	-168.5879	71.2997	6.3865	DEBRIS	
93	-227.1145	66.0971	0.6066	CRUSH RRW	
94	-226.7043	71.0830	4.7451	CRUSH LRW	
95	-218.1584	69.9892	4.6843	CRUSH LFW	
96	-219.4945	65.7003	0.8911	CRUSH RFW	
97	-218.2073	68.0595	1.1905	CRUSH	
98	-218.5763	66.9498	1.2428	CRUSH	
99	-218.4850	67.3429	1.2283	CRUSH	
100	-218.2494	67.5707	1.2636	CRUSH	
101	-217.9132	67.7204	1.2679	CRUSH	
102	-217.4719	67.7725	1.2806	CRUSH	
103	-218.9472	67.9231	1.2915	CRUSH	
104	-216.3556	68.2436	1.2967	CRUSH	
105	-218.4377	65.5737	2.4472	CRUSH 2	
106	-218.5075	66.7983	2.5178	CRUSH 2	
107	-218.2331	67.3656	2.5654	CRUSH 2	
108	-217.8129	67.5735	2.5817	CRUSH 2	

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10.22226

108	-217.6129	67.5735	2.5817	CRUSH 2	
109	-217.1928	68.0120	2.6014	CRUSH 2	
110	-216.8329	68.4227	2.5978	CRUSH 2	

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** PUBLIC **

PHOENIX POLICE DEPARTMENT REPORT

** RECORD **

ORIGINAL

PAGE NUMBER: 1

DR NUMBER: 2010 01363419

REPORT DATE: 20101021 TIME: 1451

TYPE OF REPORT: FATAL TRAFFIC COLLISION

OFFENSE: 963

LOCATION: 004100 W BETHANY HOME ROAD

BEAT: 0914 GRID: CB19

DATE/TIME OF OCCURRENCE: SUN 092610 0354

REPORTING OFFICER[S]: RICHARD CLARK
GREGORY GIBBS

5079
6490

UNIT: T21

PREMISES: STREET/ROADWAY/ALLEY VEHICLE

OFFENSE INVOLVED: BIAS - NONE(NO BIAS)

PARTY-CREW: NO

PHOTOGRAPHS TAKEN: YES BY: 6619

**** VICTIM INFORMATION ****

VICTIM -01:

NAME: [REDACTED] (**DECEASED**)

SPEAKING: ENGLISH

RACE: B SEX: M AGE: [REDACTED] HT: 505 WT: 175
HAIR: BRO EYES: BRO SSN: [REDACTED]

CLOTHING DESC & MISC:
RIGHT FRONT PASSENGER

**** V 01 - INJURY INFORMATION ****

PHYSICAL CONDITIONS:DECEASED

INJURY: PRONOUNCED DECEASED AT 0436 HOURS

PARAMEDIC TREATMENT: YES UNIT[S]: E26 E15 L24
NAMES: C SHIFT

TRANSPORTED BY: RESCUE 18

HOSPITALIZED: YES

TAKEN TO: ST. JOSEPH'S

DOCTOR'S NAME: TOMEH
ADDRESS: 350 W. THOMAS ROAD PHOENIX, AZ 85013
PHONE: (602)406-3000 EXT.

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Continued.

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VICTIM DECLINES NOTIFICATION

**** DRIVER INFORMATION ****

DRIVER -01:

SPEAKING: ENGLISH

RACE: H SEX: M AGE: HT: 511 WT: 156
HAIR: BLK EYES: BRO SSN:
DR. LICENSE & STATE:

CLOTHING DESC & MISC:
LICENSE RESTRICTION/INSTRUCTION PERMIT

**** D 01 - INJURY INFORMATION ****

PHYSICAL CONDITIONS: LACERATIONS

INJURY: HEAD LACERATION
CONCUSSION

PARAMEDIC TREATMENT: YES UNIT(S): E26 E15 L24
NAMES: C SHIFT

TRANSPORTED BY: RESCUE 918

HOSPITALIZED: YES

TAKEN TO: JOHN C. LINCOLN-NORTH MTN

ADDRESS: 250 E. DUNLAP AVENUE PHOENIX, AZ 85020
PHONE: (602) 943-2381 EXT.

**** OCCUPANT INFORMATION ****

OCCUPANT -01:

NAME:

SPEAKING: ENGLISH

RACE: B SEX: M AGE: HT: 509 WT: 130
HAIR: BRO EYES: BRO SSN:

CLOTHING DESC & MISC:
RIGHT REAR SEAT PASSENGER

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**** O 01 - INJURY INFORMATION ****

PARAMEDIC TREATMENT: YES UNIT[S]: E26 E15 L24
NAMES: C SHIFT

TRANSPORTED BY: RESCUE 26

HOSPITALIZED: YES

TAKEN TO: ST. JOSEPH'S

ADDRESS: 350 W. THOMAS ROAD PHOENIX, AZ 85013
PHONE: (602)406-3000 EXT.

**** WITNESS INFORMATION ****

WITNESS -01:

NAME: [REDACTED]

SPEAKING: ENGLISH

RACE: W SEX: F AGE: [REDACTED] HT: 000 WT: 000

**** NEXT OF KIN INFORMATION ****

NEXT OF KIN -01:

NAME: [REDACTED]

SPEAKING: ENGLISH

RACE: B SEX: F AGE: [REDACTED] HT: 000 WT: 000

CLOTHING DESC & MISC:
VICTIM'S MOTHER

**** PARENT/GUARDIAN INFORMATION ****

PARENT/GUARDIAN -01:

NAME: [REDACTED]

SPEAKING: SPANISH

RACE: H SEX: F AGE: DOB: HT: 000 WT: 000

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CLOTHING DESC & MISC:
PARENT OF THE DRIVER - R/O OF THE VEHICLE

PARENT/GUARDIAN -02:

NAME:

SPEAKING: ENGLISH

RACE: SEX: F AGE: DOB: HT: 000 WT: 000

CLOTHING DESC & MISC:
PARENT OF THE REAR SEAT OCCUPANT

**** VEHICLE ****

VEHICLE NUMBER: 01 INVOLVED PERSON: D-01

VEHICLE YEAR: 06 MAKE: CHEV MODEL: COBALT STYLE: 2D
VIN: 1G1AK15F767 OAN:
COLOR: TOP/SOLID-RED

LICENSE PLATE: STATE: AZ TYPE: PC YEAR: 11

OWNER NAME: REGISTERED TO OWNER: YES

INSURANCE CO: TITAN INSURANCE PH:)800)926-3168 EXT.
POLICY NO:

**** NARRATIVE ****

SERIAL NUMBER: 5079

REPORT INFORMATION:

REPORT NUMBER- 2010-01363419
LOCATION- 4100 WEST BETHANY HOME ROAD
DATE- SEPTEMBER 26, 2010
TIME RECEIVED- 0354 HOURS
TIME DISPATCHED- 0355 HOURS
TIME ARRIVED- 0356 HOURS

OFFICERS: (602) 495-5009

SGT. ROTHER #4304 PATROL SUPERVISOR/BRIEFING
OFC. SMITH #9298 HOSPITAL FOLLOW UP

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OFC. BARTON #8445
OFC. GLIDEWELL #8684
OFC. ANDERSON #8417
OFC. CARAIG #8646
OFC. COLLINS #8813
OFC. FIORI #7123

SCENE
SCENE
HOSPITAL FOLLOW UP
HOSPITAL FOLLOW UP
HOSPITAL FOLLOW UP
INVESTIGATION

DETECTIVES:

SGT. OPFERBECK #6619
DET. CLARK #5079
DET. GIBBS #6490
DET. SCHWARTZ #6253

VCU SUPERVISOR/PHOTOGRAPHS
CASE AGENT
SCENE INVESTIGATOR
DRE

FIRE UNITS:

C SHIFT

ENGINE 26
ENGINE 15
LADDER 24 CAPTAIN NELSON
RESCUE 26
RESCUE 18
RESCUE 918

PASSENGER TRANSPORT TO HOSPITAL
VICTIM TRANSPORT TO HOSPITAL
DRIVER TRANSPORT TO HOSPITAL (JCL-D)

HOSPITAL INFORMATION:

JOHN C. LINCOLN-NORTH MOUNTAIN
250 EAST DUNLAP AVENUE
PHOENIX, ARIZONA 85020
(602)943-2381

ST. JOSEPH'S
350 WEST THOMAS ROAD
PHOENIX, ARIZONA 85013
(602)406-3000

DATE/TIME OF DEATH:

VICTIM [REDACTED] WAS PRONOUNCED
DECEASED BY DR. TOMEH AT 0436 HOURS

*** NARRATIVE ***

ON SEPTEMBER 26, 2010, AT 0512 HOURS, SERGEANT OPFERBECK OF THE VEHICULAR
CRIMES UNIT CALLED ME AND REQUESTED I RESPOND TO A FATAL TRAFFIC COLLISION
AT 4100 WEST BETHANY HOME ROAD. THE PURPOSE OF MY RESPONSE WAS TO ASSIST

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IN THE ONGOING INVESTIGATION.

I ARRIVED FROM THE WEST AT 0605 HOURS AND NOTED PHOENIX POLICE OFFICERS HAD BETHANY HOME ROAD CLOSED TO TRAFFIC. YELLOW CRIME SCENE TAPE, BARRICADES AND MARKED POLICE CARS WERE POSITIONED IN SUCH A WAY AS TO PREVENT VEHICULAR AND PEDESTRIAN TRAFFIC FROM ENTERING THE AREA. UNIFORMED POLICE OFFICERS WERE PRESENT TO PRESERVE THE INTEGRITY OF THE SCENE.

I CONDUCTED A CURSORY INSPECTION OF THE SCENE AND NOTED A RED CHEVROLET COBALT, WITH FRONT END DAMAGE, AT REST IN THE IMMEDIATE VICINITY OF A TREE ON THE NORTH SIDE OF BETHANY HOME. ROADWAY EVIDENCE GAVE THE APPEARANCE THE CAR HAD BEEN EASTBOUND WHEN IT CROSSED OVER THE WESTBOUND LANES AND IMPACTED THE TREE WHICH WAS IN THE NARROW MEDIAN ADJACENT THE WESTBOUND LANES.

I ATTENDED A BRIEFING CONDUCTED BY PATROL SERGEANT ROTHER WHO PROVIDED THE INFORMATION KNOWN AT THE TIME. HE RELATED THE FOLLOWING:

*** BRIEFING ***

THE COLLISION INVOLVED A SINGLE EASTBOUND VEHICLE WHICH HAD COLLIDED WITH A TREE. THE VEHICLE HAD BEEN OCCUPIED BY THREE INDIVIDUALS, ALL OF WHOM HAD BEEN TRANSPORTED TO VARIOUS HOSPITALS. THE FRONT SEAT PASSENGER HAD BEEN PRONOUNCED DECEASED AT ST. JOSEPH'S AT 0436 HOURS.

THE DRIVER WAS IDENTIFIED AS [REDACTED] A [REDACTED] HISPANIC MALE. HE WAS TRANSPORTED TO JOHN C. LINCOLN-NORTH MOUNTAIN. THE REAR SEAT PASSENGER WAS KNOWN ONLY AS "[REDACTED]" AND HE HAD BEEN TRANSPORTED TO ST. JOSEPH'S HOSPITAL.

THE VEHICLE WAS DESCRIBED AS A RED, TWO DOOR, 2006 CHEVROLET COBALT WITH ARIZONA REGISTRATION. THE DRIVER'S MOTHER WAS THE REGISTERED OWNER OF THE VEHICLE.

ONE WITNESS WAS IDENTIFIED AS HAVING WITNESSED THE COLLISION AND WAS STILL AT THE SCENE.

AT THE CONCLUSION OF THE BRIEFING, IT WAS DECIDED I WOULD BE THE CASE AGENT AND DETECTIVE GIBBS WOULD INVESTIGATE THE SCENE. DETECTIVE SCHWARTZ WAS THE CASE DRE.

I LEFT THE BRIEFING IN ORDER TO INTERVIEW THE WITNESS. I CONTACTED HER NEAR THE WEST END OF THE SCENE AND SHE RELATED THE FOLLOWING:

*** WITNESS [REDACTED] ***

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████████ WAS WESTBOUND IN THE MIDDLE LANE OF BETHANY HOME ROAD AND WAS IN THE AREA OF THE DEAD END SIGN FOR THE ACCESS ROAD, WHICH WAS EAST OF THE SCENE. THE INVOLVED CAR WAS EASTBOUND IN THE RIGHT LANE IN THE AREA OF THE ALLSTATE BUILDING, WHICH IS WEST OF THE SCENE. THE VEHICLE THEN WAS IN FRONT OF HER AND SHE WONDERED IF IT WAS MAKING A LEFT TURN, BUT THERE WAS NO WHERE TO TURN INTO.

SHE DID NOT HAVE TO DO ANYTHING TO AVOID A COLLISION AS THE VEHICLE PASSED IN FRONT OF HER. SHE WENT BY THE VEHICLE AND HEARD IT GO OVER THE MEDIAN AND THEN COLLIDE WITH THE TREE. AT NO TIME DID SHE HEAR BRAKING FROM THE CHEVROLET. ██████████ INDICATED THE VEHICLE WAS NOT SPEEDING AND ITS MOVEMENT WAS AS IF THE VEHICLE WAS DRIFTING, NOT ATTEMPTING TO TURN. SHE ESTIMATED THE SPEED OF THE VEHICLE AT FORTY-FIVE TO POSSIBLY FIFTY MILES AN HOUR.

████████ TURNED AROUND AND CAME BACK TO THE SCENE. THERE WERE FOUR GIRLS AT THE VEHICLE ALREADY ATTEMPTING TO HELP. ██████████ CALLED 911. SHE OBSERVED THE DRIVER WAS A HISPANIC MALE WITH SHORT BLACK HAIR AND A TURQUOISE SHIRT. BOTH OF THE OTHER OCCUPANTS WERE HARDER TO SEE BECAUSE OF HOW THEY WERE "SCRUNCHED IN THERE".

AT THE TIME OF THE COLLISION IT WAS DARK OUT AND THE STREET LIGHTS WERE FUNCTIONING. THERE WERE NO OTHER VEHICLES ON THE ROAD.

THIS CONCLUDED THE INTERVIEW WITH VALERIE.

SERGEANT OPFERBECK THEN ASSISTED ME WITH THE NOTIFICATION OF ██████████'S FAMILY OF WHAT HAD OCCURRED. I THEN DEPARTED THE SCENE AND WENT TO THE HOSPITAL WHERE I DISCOVERED FRIENDS OF ██████████'S MOTHER, ██████████, WHERE ALREADY AT THE HOSPITAL. I LEARNED ██████████ WAS PRESENTLY OUT-OF-STATE, BUT RETURNING SOON AND HAD BEEN ADVISED OF THE COLLISION, AS WELL AS HER SON'S CONDITION. I WAS PROVIDED HER PHONE NUMBER AND WAS ABLE TO CALL HER.

THIS CONCLUDED THE INITIAL INVESTIGATION.

IN THE DAYS IMMEDIATELY FOLLOWING, I WAS CONTACTED BY OFFICER FIORI, THE SCHOOL RESOURCE OFFICER FOR MARYVALE HIGH SCHOOL. THE SCHOOL STAFF HAD MADE HER AWARE OF SOME MYSPACE/TWITTER POSTINGS SUGGESTING ██████████ BELIEVED HE WAS GOING TO DIE ON SATURDAY. OFFICER FIORI SENT ME COPIES OF THE POSTINGS FOR MY REVIEW.

DECEMBER 7, 2010

ON THIS DATE I REVIEWED THE 911 CALL LIST FOR THIS COLLISION.

1) TRACK PH10-1363419 0353 HOURS

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-CALLER WAS REPORTING A SINGLE VEHICLE TRAFFIC COLLISION IN WHICH THE CAR HAD COLLIDED HEAD ON INTO A TREE. THREE PERSONS WERE TRAPPED IN THE CAR. ON 12/7/10 I MADE A FOLLOW UP CALL AND LEARNED SHE HAD NOT SEEN THE COLLISION OCCUR, BUT HAD DRIVEN UP ON IT AFTER THE FACT.

I ALSO REVIEWED THE RADIO TRAFFIC HISTORY AND NOTED NOTHING UNUSUAL.

DECEMBER 29, 2010

ON THIS DATE I SPOKE WITH [REDACTED] ABOUT THE POSTINGS I HAD BEEN SENT. HE EXPLAINED THE POSTINGS WERE RELATED TO A DREAM HE HAD AND WERE NOT SUICIDAL STATEMENTS. ON THE NIGHT OF THE COLLISION, THEY WERE COMING FROM A PARTY AND ON THEIR WAY TO DROP OFF [REDACTED] [REDACTED] HAD NOT BEEN DRINKING. [REDACTED] WAS NOT TIRED AND THOUGH HE DOES NOT REMEMBER WHAT HAPPENED, HE DOES NOT BELIEVE HE FELL ASLEEP.

*** CONCLUSION ***

ON SEPTEMBER 26, 2010, AT APPROXIMATELY 0354 HOURS, [REDACTED] WAS DRIVING HIS MOTHER'S 2006 CHEROLET COBALT PASSENGER CAR EASTBOUND IN THE AREA OF 4100 WEST BETHANY HOME ROAD. HE WAS DRIVING FRIENDS HOME FROM A PARTY. WITH HIM IN THE VEHICLE WAS FRONT SEAT PASSENGER [REDACTED] AND REAR SEAT PASSENGER [REDACTED].

A WITNESS OBSERVED THE CHEVROLET DRIFTING ACROSS THE EASTBOUND LANES OF TRAFFIC AND DID NOT NOTICE AN INDICATION OF BRAKING. THE VEHICLE COLLIDED WITH A NARROW MEDIAN, CLIMBED ONTO IT AND THEN COLLIDED WITH A TREE. AS A RESULT OF THE IMPACT, [REDACTED] RECEIVED LIFE THREATENING INJURIES AND LATER DIED AT ST. JOSEPH'S HOSPITAL. [REDACTED] ALSO RECEIVED SERIOUS INJURIES AND WAS TRANSPORTED TO THE HOSPITAL. [REDACTED] WAS ALSO TRANSPORTED TO A HOSPITAL, BUT WAS RELEASED THE SAME DAY. HE WAS FOUND TO HAVE AN INSTRUCTION PERMIT ONLY AND NONE OF THE OTHER OCCUPANTS HAD A VALID DRIVERS LICENSE.

AS A RESULT OF THE SCENE INVESTIGATION, IT WAS DETERMINED NEITHER PASSENGER WAS WEARING A SEAT BELT AT THE TIME OF THE COLLISION. THE COLLISION WAS RECONSTRUCTED AND IT WAS DETERMINED THE VEHICLE WAS TRAVELING AT FIFTY MILES PER HOUR AT IMPACT.

BETHANY HOME ROAD IS A POSTED FORTY-FIVE MILE PER HOUR ZONE.

VICTIM RECEIVED RIGHTS INFORMATION: NO

MAIL-IN SUPPLEMENT:

INVOICES:

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DR ENTERED BY : 5079

DR FINALIZED BY : A3154

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REPORT DATE: 20101001 TIME: 0952

TYPE OF REPORT: FATAL TRAFFIC COLLISION

OFFENSE: 963

PROSECUTION DESIRED: NO

BOOKING VICTIM NOTIFIED: NO

LOCATION: 004100 W BETHANY HOME ROAD

BEAT: 0914 GRID: CB19

DATE/TIME OF OCCURRENCE: SUN 092610 0354

REPORTING OFFICER[S]: DAVID SCHWARTZ

6253 UNIT: T22

PREMISES: STREET/ROADWAY/ALLEY

OCCUPIED: YES

OFFENSE INVOLVED: BIAS - NONE (NO BIAS)

PARTY-CREW: NO

PHOTOGRAPHS TAKEN: NO BY:

SCENE PROCESSED FOR LATENTS: NO BY:

LATENTS SUBMITTED TO CRIME LAB: NO

**** NARRATIVE ****

SERIAL NUMBER: 6253

ON SEPTEMBER 26, 2010 AT 0354 HOURS A SINGLE-VEHICLE FATAL TRAFFIC COLLISION OCCURRED AT 4100 WEST BETHANY HOME ROAD. THIS SUPPLEMENT DOCUMENTS MY EVALUATION OF DRIVER [REDACTED].

ON SUNDAY SEPTEMBER 26, 2010 AT 0513 HOURS I WAS TELEPHONED BY SERGEANT OPFERBECK. HE TOLD ME A FATAL TRAFFIC COLLISION HAD OCCURRED AT 4100 WEST BETHANY HOME ROAD. HE SAID A TEENAGED DRIVER HAD DRIVEN OFF THE ROAD INTO A TREE. HE SAID THE DRIVER DISPLAYED NO OBVIOUS SIGNS OR SYMPTOMS OF IMPAIRMENT. HE SAID ONE PASSENGER HAD DIED AND ONE PASSENGER WAS IN CRITICAL CONDITION. HE REQUESTED I RESPOND TO JOHN C. LINCOLN NORTH MOUNTAIN HOSPITAL TO EVALUATE THE DRIVER.

I AM A CERTIFIED DRUG RECOGNITION EXPERT AND EXPERIENCED IN EVALUATING PERSONS FOR IMPAIRMENT.

**** INVESTIGATION AT JOHN C. LINCOLN NORTH MOUNTAIN HOSPITAL ****

I CONTACTED OFFICER SMITH 9298 IN THE EMERGENCY ROOM OF THE HOSPITAL AT 0557 HOURS. OFFICER SMITH TOLD ME THE FOLLOWING;

OFFICER SMITH WAS ONE OF THE FIRST OFFICERS TO ARRIVE AT THE SCENE AND

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GOT THERE AT ABOUT THE SAME TIME AS OTHER OFFICERS AND THE FIRE DEPARTMENT. HE SAW DRIVER [REDACTED] GET OUT OF THE CAR WITH A LACERATION TO THE RIGHT SIDE OF HIS HEAD. HE GOT VERY CLOSE TO THE FACE OF [REDACTED] IN ORDER TO DETECT ANY ODOR OF ALCOHOL. HE COULDN'T SMELL ANY ODOR OF ALCOHOL ON [REDACTED] OR FROM INSIDE THE CAR. [REDACTED] WAS COHERENT AND STATED HE WAS THE DRIVER. [REDACTED] HAD NO RECOLLECTION OF THE CRASH, BUT STATED HE WAS DRIVING HIS FRIENDS TO HOME FROM A HOUSE PARTY. HE KNEW THE TWO PASSENGERS FROM HIGH SCHOOL. HE SAID THE FRONT PASSENGER WAS [REDACTED] AND THE REAR PASSENGER WAS [REDACTED]. [REDACTED] TOLD OFFICER SMITH HE HAD NOT USED DRUGS OR ALCOHOL. OFFICER SMITH NOTICED [REDACTED] WAS CRYING AND SPOKE WITH A NORMAL VOICE. [REDACTED] APPEARED TO KNOW THE SERIOUSNESS OF THE INJURIES TO THE PASSENGER AND WAS PRESENT WHEN THE MEDICS REMOVED THEM FROM THE VEHICLE.

I CONTACTED [REDACTED], WHO WAS LYING ON A HOSPITAL BED IN THE EMERGENCY ROOM. HE HAD A LACERATION TO THE RIGHT SIDE OF HIS FOREHEAD THAT WAS CLOSED WITH SUTURES. HIS MOTHER [REDACTED] WAS PRESENT, BUT SPOKE NO ENGLISH. HE WAS WEARING A C-SPINE COLLAR AND HAD MEDICAL MONITORS AND AN IV LINE ATTACHED. HE APPEARED GROGGY, BUT SPOKE WITH A NORMAL VOICE AND WITH APPROPRIATE RESPONSES.

I INTRODUCED MYSELF TO [REDACTED] AND HELD MY IDENTIFICATION UP WHERE HE COULD SEE IT. HE IMMEDIATELY ASKED ABOUT THE CONDITION OF HIS FRIENDS. I ANSWERED HIS QUESTIONS, ADVISING HIM THAT ONE OF THE PASSENGERS WAS DECEASED AND ONE WAS IN CRITICAL CONDITION. HE BEGAN CRYING.

[REDACTED] TOLD ME HIS PASSENGERS WERE [REDACTED] AND [REDACTED]. [REDACTED] OLD [REDACTED]. HE DID NOT KNOW [REDACTED]'S LAST NAME. HE DID NOT KNOW THEIR ADDRESS OR ANY CONTACT INFORMATION FOR THEIR FAMILIES.

A NURSE DETACHED THE MONITORS AND REMOVED THE C-SPINE COLLAR. HE TOLD [REDACTED] THEY WERE GOING TO GET HIM UP TO SEE IF HE COULD WALK AND USE THE RESTROOM. IF HE COULD DO BOTH HE WOULD BE DISCHARGED.

WHEN [REDACTED] WAS SEATED ON THE EDGE OF THE BED I PERFORMED EYE TESTS AND A BREATH TEST. [REDACTED] STATED HE HAD NOT BEEN TAKING DRUGS, MEDICATIONS, OR ALCOHOL. HIS EYES WERE RED AND WATERY FROM CRYING. HIS PUPIL SIZES WERE WITHIN THE NORMAL RANGE. HORIZONTAL AND VERTICAL GAZE NYSTAGMUS WERE NOT PRESENT. HIS EYES CONVERGED NORMALLY. [REDACTED] PROVIDED A BREATH SAMPLE INTO A PORTABLE BREATH TEST INSTRUMENT WITH A RESULT OF 0.000.

I CONCLUDED [REDACTED] WAS NOT IMPAIRED FOR THE PURPOSE OF OPERATING A MOTOR VEHICLE.

[REDACTED]'S [REDACTED] BROTHER [REDACTED] ENTERED THE ROOM. HE NOTICED THE PORTABLE BREATH TEST INSTRUMENT AND ASKED ME IF [REDACTED] HAD BEEN DRINKING. I TOLD HIM NO. [REDACTED] TOLD ME [REDACTED] WAS A VERY GOOD KID THAT NEVER GETS INTO TROUBLE.

A SHORT TIME LATER I MET [REDACTED]'S FATHER, [REDACTED]. HE SPOKE SOME

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Continued.

ENGLISH AND ASKED SEVERAL QUESTIONS.

██████ WAS ABLE TO SLOWLY WALK TO THE RESTROOM AND I LISTENED AS THE NURSE GAVE HIM HIS DISCHARGE INSTRUCTIONS. THE NURSE SAID ██████ HAD A CONCUSSION.

I TELEPHONED SERGEANT OPFERBECK, WHO WAS AT THE COLLISION SCENE. HE ADVISED ME ██████ ONLY HAD AN INSTRUCTIONAL PERMIT. HE REQUESTED I QUESTION ██████ TO SEE IF ONE OF HIS PASSENGERS WAS PROPERLY LICENSED. SERGEANT OPFERBECK ALSO ASKED ME TO REQUEST CONSENT FROM THE REGISTERED OWNER OF THE VEHICLE, ██████, TO CONDUCT A SEARCH TO IMAGE THE DATA STORED IN THE EVENT DATA RECORDER OF THE VEHICLE.

I ASKED ██████ ABOUT THE INSTRUCTIONAL PERMIT. HE SAID HE HAD IT FOR ABOUT FIVE MONTHS. I ASKED HIM IF ONE OF HIS PASSENGERS HAD A DRIVER'S LICENSE. HE REPLIED, "I DON'T KNOW, SIR". HE STATED HE DID NOT HAVE PERMISSION TO BE DRIVING HIS MOTHER'S CAR. HE SHOWED ME HIS ARIZONA INSTRUCTIONAL DRIVER PERMIT AND ARIZONA STATE IDENTIFICATION CARD.

I ASKED ██████ ABOUT ██████'S DRIVING HABITS. ██████ SAID ██████ USUALLY ONLY DRIVES WHEN HE OR HIS MOTHER IS WITH HIM.

I EXPLAINED TO ██████ THE REASON FOR NEEDING TO SPEAK WITH THEIR MOTHER. HE LED ME TO A FAMILY WAITING ROOM WHERE ██████ WAS SEATED AND HE AGREED TO TRANSLATE. ██████ WAS FLUENT IN ENGLISH AND SEEMED TO HAVE FLUENT SPANISH SKILLS WHEN COMMUNICATING WITH HIS PARENTS.

AT 0634 HOURS I EXPLAINED TO ██████ THAT THE AIR BAG MODULE OF HER CAR STORES DATA IN A RECORDER THAT CAN BE USEFUL IN UNDERSTANDING DETAILS OF THE COLLISION. I TOLD HER IT MAY POSSIBLY RECORD INFORMATION SUCH AS SPEED AND THE SEVERITY OF THE CRASH. I TOLD HER THAT SINCE THE CAR BELONGED TO HER WE WOULD NEED HER PERMISSION IN ORDER TO OBTAIN IT. ██████ TRANSLATED AND SHE RESPONDED. HER RESPONSE WAS IN SPANISH. IT WAS A LONG RESPONSE IN WHICH I UNDERSTOOD SHE WAS WILLING TO PROVIDE PERMISSION AND SHE WAS TALKING ABOUT THE AIR BAGS. ██████ RELAYED TO ME THAT SHE WANTED US TO OBTAIN THE DATA BECAUSE SHE WAS INTERESTED IN THE INFORMATION HERSELF. HE SAID SHE EXPLAINED SHE HAD RECEIVED A RECALL NOTICE TO REPAIR THE AIR BAGS AND SHE HAD NOT TAKEN THE VEHICLE IN FOR REPAIR.

I PROVIDED THE FAMILY WITH THE REPORT NUMBER AND MY CONTACT INFORMATION.

██████ PROVIDED ME WITH A TELEPHONE NUMBER. HE SAID IT WAS FROM A FEMALE CALLER TO HIS BROTHER'S PHONE WHO SAID SHE WAS LOOKING FOR HER SON ██████.

I TELEPHONED SERGEANT OPFERBECK AGAIN. I RELAYED THE TELEPHONE NUMBER FOR THE MOTHER OF ██████. A SHORT TIME LATER SERGEANT OPFERBECK CALLED ME BACK. HE SAID HE CALLED ██████'S MOTHER AND SHE PROVIDED A DESCRIPTION OF HIM. HE SAID ██████ WOULDN'T HAVE IDENTIFICATION WITH HIM. HE RELAYED THE DESCRIPTION TO ME INCLUDING THE DESCRIPTION OF A TATTOO WITH THREE STARS ON HIS NECK. SERGEANT OPFERBECK REQUESTED I GO TO SAINT

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JOSEPH'S MEDICAL CENTER TO DETERMINE IF THE DECEASED MALE VICTIM MATCHED THE DESCRIPTION OF [REDACTED]

**** INVESTIGATION AT SAINT JOSEPH'S MEDICAL CENTER ****

I DROVE TO SAINT JOSEPH'S MEDICAL CENTER. THE MEDICAL STAFF IN THE TRAUMA ROOM TOLD ME [REDACTED] WAS INTUBATED AND IN CRITICAL CONDITION. HE HAD BEEN TAKEN TO A ROOM IN THE INTENSIVE CARE UNIT. THEY HAD NO CONTACT INFORMATION FOR [REDACTED]'S FAMILY, BUT SOMEHOW HAD LEARNED HIS MOTHER WAS CURRENTLY ON A CRUISE. THEY TOLD ME THE REMAINS OF AN UNIDENTIFIED MALE FROM THE SAME COLLISION WERE AT THE HOSPITAL MORGUE.

HOSPITAL SECURITY ESCORTED ME TO THE MORGUE WHERE I VIEWED THE REMAINS OF THE DECEASED VICTIM AT 0720 HOURS. THE HOSPITAL TAG AND RECORDS LISTED HIS NAME AS DOE WITH A PATIENT NUMBER 90983495.

THE REMAINS WERE OF A YOUNG ADULT OR TEENAGED BLACK MALE OF MEDIUM BUILD, DARK COMPLEXION, AND SHORT HAIR. HE HAD SOME DRIED BLOOD AROUND HIS NOSE AND MOUTH AND MINOR CUTS AND ABRASIONS TO HIS LOWER LEGS. HE HAD NO VISIBLE INJURY TO HIS TORSO. THERE WERE NO INJURIES CONSISTENT WITH THE USE OF A LAP AND SHOULDER RESTRAINT BELT. HIS ONLY CLOTHING WAS A PAIR OF BOXER BRIEFS. ON THE RIGHT SIDE OF HIS NECK THERE WAS A TATTOO OF THREE STARS AS DESCRIBED BY HIS MOTHER.

I TELEPHONED SERGEANT OPFERBECK AND RELAYED WHAT I HAD LEARNED. THIS CONCLUDED MY INVOLVEMENT IN THIS INVESTIGATION.

VICTIM RECEIVED RIGHTS INFORMATION: NO

MAIL-IN SUPPLEMENT: NO

INVOICES:

DR ENTERED BY : 6253 DR FINALIZED BY : A3154

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DR NUMBER: 2010 01363419 2

REPORT DATE: 20101118 TIME: 1619

TYPE OF REPORT: FATAL TRAFFIC COLLISION

OFFENSE: 963

LOCATION: 004100 W BETHANY HOME ROAD

BEAT: 0914 GRID: CB19

DATE/TIME OF OCCURRENCE: SUN 092610 0354

REPORTING OFFICER[S]: GREGORY GIBBS
RICHARD CLARK

6490 UNIT: T21
5079

OFFENSE INVOLVED: BIAS - NONE(NO BIAS)

**** NARRATIVE ****

SERIAL NUMBER: 6490

***** CALLOUT / BRIEFING *****

ON SUNDAY, SEPTEMBER 26, 2010, AROUND 0507 HOURS, I WAS CONTACTED ON MY CELLULAR TELEPHONE BY SERGEANT OPFERBECK WHO TOLD ME THERE WAS A SINGLE VEHICLE FATAL COLLISION IN THE 4100 BLOCK OF WEST BETHANY HOME ROAD. SERGEANT OPFERBECK REQUESTED I RESPOND TO THE LOCATION AND ASSIST WITH THE INVESTIGATION.

I ARRIVED ON THE EAST SIDE OF THE COLLISION SCENE AROUND 0625 HOURS. I NOTICED THE SCENE HAD BEEN SECURED BY RESPONDING PATROL OFFICERS. THE OFFICERS WERE USING THEIR MARKED POLICE VEHICLES, BARRICADES, ORANGE CONES, AND YELLOW CRIME SCENE TAPE TO DIVERT PEDESTRIAN AND VEHICULAR TRAFFIC AROUND THE COLLISION SCENE.

WHEN I APPROACHED THE INNER PORTION OF THE SCENE I OBSERVED A RED PASSENGER CAR ON THE NORTH SIDE OF BETHANY HOME ROAD. THE CAR HAD SUSTAINED SEVERE FRONT END DAMAGE AND WAS IN THE IMMEDIATE VICINITY OF A LARGE TREE WHICH IT HAD STRUCK. THE CAR WAS FACING GENERALLY EAST.

I MET WITH SERGEANT OPFERBECK AND DETECTIVE CLARK, WHO HAD ALSO RESPONDED TO THE SCENE. WE ATTENDED A BRIEFING OF THE PRELIMINARY FACTS OF THE CASE AS THEY WERE KNOWN AT THE TIME GIVEN BY THE SCENE SUPERVISOR SERGEANT ROTHER. SERGEANT ROTHER TOLD US THE COLLISION INVOLVED A SINGLE VEHICLE WHICH WAS A RED 2006 CHEVROLET COBALT. THERE WAS A TOTAL OF THREE OCCUPANTS IN THE VEHICLE, INCLUDING THE DRIVER, AND THE FRONT SEAT PASSENGER HAD BEEN TRANSPORTED TO THE HOSPITAL AND LATER PRONOUNCED DEAD AS A RESULT OF THE COLLISION. SERGEANT ROTHER PROVIDED THE BIOGRAPHICAL INFORMATION ON THE OCCUPANTS AS WELL AS THE SINGLE KNOWN WITNESS.

AT THE CONCLUSION OF THE BRIEFING, IT WAS DETERMINED THAT DETECTIVE CLARK WOULD BE THE CASE AGENT AND I WOULD INVESTIGATE THE SCENE.

***** COLLISION SCENE OVERVIEW *****

THE COLLISION OCCURRED IN THE 4100 BLOCK OF WEST BETHANY HOME ROAD,

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Continued.

TA000126828

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PHOENIX POLICE DEPARTMENT REPORT

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APPROXIMATELY 210 FEET WEST OF NORTH 41ST AVENUE. BETHANY HOME ROAD IS A MAJOR EAST AND WEST ROADWAY. THERE ARE TWO LANES FOR EASTBOUND TRAVEL AND THREE LANES OF TRAVEL FOR WESTBOUND TRAVEL. THE LANES ARE SEPERATED BY A TWO-WAY LEFT TURN LANE. ON THE NORTH SIDE OF BETHANY HOME ROAD THERE IS AN ACCESS ROAD FOR THE HOUSES ON THE NORTH SIDE. THE ACCESS ROAD AND THE MAIN PORTION OF BETHANY HOME ROAD ARE SEPERATED BY A RAISED MEDIAN WHICH CONTAINS MATURE LANDSCAPING.

THE ROAD SURFACE IS MADE UP OF AN ASPHALT COMPOSITION IN GOOD REPAIR AND THE ALIGNMENT IS STRIAGHT. ALL LINES AND MARKINGS WERE CLEARLY VISIBLE AND THE POSTED SPEED LIMIT FOR THE AREA IS 40 MILES PER HOUR. THE ROADWAY IS BORDERED BY RAISED CURBS AND CONCRETE SIDEWALKS ON THE SOUTH SIDE.

***** EVIDENCE *****

THERE WAS A LARGE DEBRIS FIELD WHICH CONSISTED OF AUTOMOBILE PARTS AND PERSONAL ITEMS FROM WITHIN THE CAR. IT EXTENDED INTO THE ACCESS ROAD ON THE NORTHSIDE, THE RAISED MEDIAN, AND THE MIDDLE AND CURB LANES FOR WESTBOUND TRAVEL AND STRETCHED APPROXIMATELY 100 FEET TO THE EAST OF THE CAR'S POINT OF REST NEXT TO THE TREE.

I LOCATED TIRE MARKS TO THE WEST OF THE POINT OF IMPACT WHICH WERE MADE BY BOTH LEFT SIDE TIRES AND THE RIGHT FRONT TIRE. THE TIRE MARKS CONSISTED OF THREE CURB STRIKES (ONE FOR EACH TIRE) AND PRINTING THROUGH THE DIRT AND GRAVEL RAISED MEDIAN LANDSCAPING AREA. THE LEFT FRONT TIRE MARK WAS APPROXIMATELY 27 FEET LONG AND THE LEFT REAR TIRE MARK WAS APPROXIMATELY 42 FEET LONG. BOTH OF THE TIRE MARKS ENDED WHERE THE TIRES WOULD HAVE BEEN AT IMPACT WITH THE TREE AND STARTED ON THE NORTH SIDE CURB AT THE CURB STRIKES. THE FRONT RIGHT TIRE MARK ALSO STARTED AS A CURB STRIKE ON THE MEDIAN AND ENDED WHERE THE TIRE WOULD HAVE BEEN AT IMPACT WITH THE TREE. THE RIGHT FRONT TIRE MARK WAS APPROXIMATELY SIX FEET LONG.

FROM THE TIRE MARKS TO THE POINT OF IMPACT AN ANGLE OF ATTACK WITH THE TREE COULD BE DETERMINED. THE ANGLE OF ATTACK WAS APPROXIMATELY SEVEN TO EIGHT DEGREE NORTH OF DUE EAST. IN THE SCENE PHOTOGRAPHS THE ORANGE CONES SHOW THE LEFT REAR TIRE, THE BLUE CONES SHOW THE LEFT FRONT TIRE, AND THE YELLOW CONES SHOW THE RIGHT FRONT TIRE.

I DID NOT LOCATE ANY EVIDENCE OF EVASIVE ACTION PRIOR TO IMPACT OR PRE-IMPACT BRAKING.

***** AIR BAG CONTROL MODULE IMAGED *****

THE CHEVROLET COBALT IS EQUIPPED WITH A SENSING AND DIAGNOSTIC MODULE (SDM) WHICH IS SUPPORTED BY THE BOSCH CRASH DATA RETRIEVAL (CDR) TOOL AND SOFTWARE. I ATTEMPTED TO IMAGE THE SDM SEVERAL TIMES BUT THERE WAS INSUFFICIENT POWER TO CONDUCT THE IMAGE. POWER WAS APPLIED TO THE COBALT THROUGH THE USE OF BOOSTER CABLES AND AN IMAGE WAS SUCCESSFUL THROUGH THE DIRECT LINK CONNECTOR. THE MULTIPLE ATTEMPTS AT THE IMAGE ACCOUNTS FOR THE DIFFERENCE IN IGNITION CYCLES AT DEPLOYMENT AND IGNITION CYCLES AT INVESTIGATION.

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Continued.

TA000126829

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THE SDM RECORDED A "DEPLOYMENT EVENT" WHICH INDICATES THE DRIVER'S AIR BAG WAS DEPLOYED BUT THE PASSENGER AIR BAG WAS SUPPRESSED. THERE WERE NO OTHER EVENTS RECORDED. THE IMAGE INDICATES THE BRAKE LIGHT WARNING LAMP WAS OFF AND THE SPEED OF THE VEHICLE ONE SECOND BEFORE ALGORITHM ENABLE WAS 46 MILES PER HOUR. THE DRIVER'S SEAT BELT STATUS WAS BUCKLED AND THE PASSENGER SEAT BELT STATUS WAS UNBUCKLED. THE MAXIMUM CHANGE IN LONGITUDINAL VELOCITY WAS 49.47 MILES PER HOUR.

FOR ADDITIONAL DETAILS REGARDING THE SDM AND DATA LIMITATIONS REFER TO THE IMAGE PRINTOUT.

***** VEHICLE INSPECTION *****

THE INVOLVED VEHICLE WAS AT ITS UNCONTROLLED POINT OF REST AND WAS A RED 2006 CHEVROLET COBALT LS TWO-DOOR. IT WAS DISPLAYING ARIZONA LICENSE PLATE "██████" AND ITS VEHICLE IDENTIFICATION NUMBER WAS "1G1AK15F767██████". THE COBALT HAD SUSTAINED SEVERE FRONT END DAMAGE AS A RESULT OF COLLIDING WITH THE TREE (54 INCH CIRCUMFERENCE).

THE RIGHT REAR TIRE WAS A CONTINENTAL TOURING CONTACT AS, SIZE P195/60R15 M+S 87S. IT HAD APPROXIMATELY 1/8 OF AN INCH OF TREAD AND WAS FREE TO ROTATE. THE TIRE WAS STILL ON THE CURBING OF THE NORTH SIDE OF THE RAISED MEDIAN. THERE WAS SCUFFING ACROSS THE TREAD AND THE TIRE WAS INFLATED TO 20 PSI.

THE RIGHT FRONT TIRE WAS AN UNKNOWN MAKE, TOURING HR MODEL, SIZE P195/60R15. THE TIRE WAS PUSHED REARWARDS AND LOCKED BY DAMAGE. THE TIRE WAS STILL INFLATED (UNKNOWN PSI) EVEN THOUGH IT HAD BEEN PUSHED REARWARDS TO THE A-PILLAR AREA. THERE WAS A WHITE COATING AND SCUFFING ACROSS THE TREAD WHICH MEASURED 5/32 OF AN INCH DEEP. THE TIRE WAS NOT IN CONTACT WITH, AND WAS APPROXIMATELY 6 INCHES ABOVE THE RAISED MEDIAN.

THE LEFT FRONT TIRE WAS A FIRESTONE, FIREHAWK GT, SIZE P195/60R15 87H M+S. IT WAS INFLATED, FREE TO ROTATE, HAD 1/8 OF AN INCH OF TREAD, AND WAS INFLATED TO 32 PSI. THERE WAS TREAD SCUFFING AND WHITE SIDEWALL SCUFFING CONSISTENT WITH A MINOR CURB STRIKE. IN THE AREA OF THE SIDEWALL SCUFFING THERE WAS A STIKE ON THE SILVER PLASTIC RIM COVER.

THE LEFT REAR TIRE WAS A WESTLAKE R-VH680 P195/60R15 88V. IT WAS DEFLATED AND OFF OF THE RIM. THERE WAS GOUGE IN THE OUTER SIDEWALL AND SCUFFING IN THE AREA OF THE GOUGE. THE SCUFFING AND SIDEWALL DAMAGE WAS CONSISTENT WITH A HARDER CURB STRIKE. I MEASURED THE TREAD DEPTH AS 5/32 OF AN INCH.

THE RECOMMENDED TIRE SIZE AND PRESSURE IS P195/60R15 S AT 30 PSI.

THE KIYS WERE IN THE IGNITION AND THE LIGHTS WERE IN THE "AUTO" POSITION. THERE WAS A CD PLAYING AT A LOW VOLUME WHEN POWER WAS APPLIED TO THE VEHICLE. I COULD NOT DETERMINE A MILEAGE READING DUE TO ERROR MESSAGES BEING DISPLAYED ON THE LCD READOUT IN THE CAR'S INSTRUMENT CLUSTER.

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Continued.

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THE DRIVER'S AIR BAG HAD DEPLOYED AND THERE WAS A SMALL AMOUNT OF BLOOD ON THE BAG. THE DRIVER'S SEAT BELT WAS EXTENDED AND LOCKED INDICATING IT WAS WORN AT THE TIME OF THE COLLISION. THE DRIVER'S SEATBACK WAS PUSHED FORWARD ON THE RIGHT SIDE BUT RECLINED. THE DAMAGE TO THE REAR OF THE DRIVER'S SEAT WAS CONSISTENT WITH AN UNRESTRAINED PASSENGER IN THE REAR STRIKING THE SEAT UPON IMPACT.

THE BRAKE PEDAL WAS PUSHED TO THE RIGHT. THE CAR WAS EQUIPPED WITH AN AUTOMATIC TRANSMISSION AND THE GEAR SELECTOR APPEARED TO BE IN PARK BUT I COULD NOT CONFIRM IT WAS IN PARK. THE STEERING WHEEL WAS BENT FORWARD ON THE LEFT SIDE AND THE FRONT WINDOWS WERE IN THE DOWN POSITION.

THE FRONT PASSENGER AIR BAG DID NOT DEPLOY BUT THE AIR BAG HOUSING WAS AJAR. THE CAR WAS NOT EQUIPPED WITH SIDE IMPACT CURTAINS. THERE WAS CONTACT DAMAGE ON THE GLOVE BOX DOOR AND THE PASSENGER SEATBACK WAS INCLINED FORWARD. THERE WAS CONTACT DAMAGE IN THE CENTER REAR PORTION OF THE PASSENGER FRONT SEAT WHICH WAS AGAIN, CONSISTENT WITH THE UNRESTRAINED REAR PASSENGER STRIKING THE SEAT UPON IMPACT. THE PASSENGER FRONT SEAT BELT WAS RETRACTED AND LOCKED INDICATING IT WAS NOT WORN AT THE TIME OF THE COLLISION. THE THREE SEAT BELTS IN THE REAR WERE RETRACT BUT LOOSE AND FUNCTIONING CORRECTLY (THEY WOULD BUCKLE AND UN-BUCKLE). I DID NOT OBSERVE ANY STRETCH MARKS OR OTHER SIGNS WHICH WOULD INDICATE THE REAR SEAT BELTS WERE BEING WORN AT THE TIME OF THE COLLISION.

THERE WAS INDUCED DAMAGE ON THE WINDSHIELD AND RIGHT DOOR. AN ATTEMPT HAD BEEN MADE TO FORCIBLY OPEN THE RIGHT SIDE DOOR IN A MANNER CONSISTENT WITH AN EMERGENCY SERVICES EXTRACTION.

UNITED ROAD SERVICES (DBA SHAMROCK TOWING) WAS REQUESTED AND ARRIVED A SHORT WHILE LATER. I DIRECTED THE TOW DRIVER (LEROY #65) TO PULL THE CAR AWAY FROM THE TREE AND PLACE IT ON THE ACCESS ROAD. AFTER THE CAR WAS MOVED I TOOK MEASUREMENTS OF THE DAMAGE FACE TO LATER USE IN A RECONSTRUCTION OF THE COLLISION. AFTER THE MEASUREMENTS WERE TAKEN AND THE CAR WAS PHOTOGRAPHED, SHAMROCK TOWING TOOK THE CAR TO THEIR STORAGE LOT LOCATED AT 2956 WEST OSBORN ROAD.

***** MEASUREMENTS / PHOTOGRAPHS *****

I USED A SOKKIA TOTAL STATION (ROBOTICS) TO TAKE MEASUREMENTS OF THE COLLISION SCENE, ROADWAY, AND CAR. I LATER USED THESE MEASUREMENTS TO RECONSTRUCT THE COLLISION AND, IN CONJUNCTION WITH AN AERIAL PHOTOGRAPH, CREATED A SCALED DIAGRAM OF THE THE SCENE. FOR ADDITIONAL INFORMATION ON THE MEASUREMENTS AND THE DIAGRAM, REFER TO THE COMPLETED ARIZONA CRASH REPORT.

SERGEANT OPFERBECK TOOK DIGITAL PHOTOGRAPHS OF THE COLLISION SCENE, ROADWAY, AND CAR. THE DISC CONTAINING THE PHOTOGRAPHS WAS LATER TURNED OVER TO THE FORENSIC IMAGING UNIT OF THE PHOENIX POLICE DEPARTMENT.

***** CONCLUSION *****

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Continued.

TA000126831

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AT THE END OF MY INVESTIGATION AND AFTER CONFERRING WITH DETECTIVE CLARK I ARRIVED AT THE FOLLOWING CONCLUSION:

THE COBALT WAS TRAVELING EASTBOUND ON WEST BETHANY HOME ROAD. IT DRIFTED INTO THE WESTBOUND LANES OF TRAVEL IN THE 4100 BLOCK AND STRUCK THE CURB FOR THE RAISED MEDIAN WHICH SEPERATES THE ACCESS ROAD AND MAIN PORTION OF BETHANY HOME. THE COBALT CONTINUED EAST NORTHEAST ACROSS THE MEDIAN AND COLLIDED WITH A TREE.

THE SDM IMAGE SHOWS THE COBALT WAS TRAVELING 46 MILES PER HOUR ONE SECOND PRIOR TO THE COLLISION AND EXPERIENCED A 49 MILE PER HOUR MAXIMUM CHANGE IN VELOCITY. I CONDUCTED A RECONSTRUCTION OF THE COLLISION AND DETERMINED AN IMPACT SPEED JUST OVER 50 MILES PER HOUR.

THE SDM IMAGE SHOWED THE DRIVER'S SEAT BELT WAS BEING WORN BUT THE FRONT SEAT PASSENGER SEAT BELT WAS NOT BUCKLED. UPON EXAMINATION OF THE CAR I FOUND THIS TO BE TRUE. THE INTERACTION WITH THE REAR PORTIONS OF THE FRONT SEATS, ALONG WITH THE LACK WAS STRETCH OR WEAR MARKS ON THE REAR SEAT BELTS INDICATE THE REAR PASSENGER WAS NOT WEARING A SEAT BELT AT THE TIME OF THE COLLISION.

THE 2006 CHEVROLET COBALT DOES HAVE A RECALL IN REGARDS TO VEHICLES NOT EQUIPPED WITH SIDE CURTAIN AIR BAGS. THE RECALL CALLS FOR ENERGY ABSORBANT MATERIAL TO BE PLACED IN THE VEHICLE FOR INCREASED OCCUPANT SAFETY. IT IS UNKNOWN IF THIS RECALL PROCEDURE HAD BEEN PERFORMED OR NOT.

THE SDM ALSO SHOWED A DIAGNOSTIC TROUBLE CODE AT EVENT NUMBERED B0081. IN DOING RESEARCH ON THIS FAULT CODE I FOUND IT TO BE RELATED TO THE PASSENGER PRESENCE SYSTEM. HOWEVER, I COULD NOT DETERMINE IF THIS SUPPRESSED THE FRONT PASSENGER AIR BAG OR NOT.

THERE WAS NO EVIDENCE AT THE SCENE TO INDICATE ERRATIC STEERING OR AN EVASIVE MANEUVER PRIOR TO THE COLLISION. THE SDM SHOWS THE STEERING ANGLE TO BE ZERO DEGREES. THE STEERING ANGLE IS MEASURED IN INCREMENTS OF 16 DEGREES - REFER TO DATA LIMITATIONS FOR ADDITIONAL INFORMATION.

VICTIM RECEIVED RIGHTS INFORMATION: NO

MAIL-IN SUPPLEMENT:

INVOICES:

DR ENTERED BY : 6490

DR FINALIZED BY : A3154

END OF REPORT

DR NO: 2010 01363419

002

TA000126832

** PUBLIC **

PHOENIX POLICE DEPARTMENT REPORT

** RECORD **

SUPPLEMENT

PAGE NUMBER: 1

DR NUMBER: 2010 01363419

3

REPORT DATE: 20101208 TIME: 0938

TYPE OF REPORT: FATAL TRAFFIC COLLISION

OFFENSE: 963

LOCATION: 004100 W BETHANY HOME ROAD

BEAT: 0914 GRID: CB19

DATE/TIME OF OCCURRENCE: SUN 092610 0354

REPORTING OFFICER(S): BRET GLIDEWELL
KENNETH BARTON

8684 UNIT: 91K
8445

OFFENSE INVOLVED: BIAS - NONE(NO BIAS)

**** NARRATIVE ****

SERIAL NUMBER: 8684

ON 09/26/10 OFFICER BARTON #8445 AND I WERE OPERATING IN A TWO MAN MARKED PATROL UNIT. AT APPROXIMATELY 0353 HOURS WE RESPONDED TO AN EMERGENCY ACCIDENT WITH INJURY CALL FOR SERVICE AT 4100 W. BETHANY HOME RD.

UPON OUR ARRIVAL I OBSERVED A RED CHEVY CAVALIER [COBALT] ON THE NORTH SIDE OF THE ROAD THAT HAD IMPACTED A TREE. PHOENIX FIRE DEPT. ENGINE 26-C SHIFT WAS ALREADY ON SCENE AND TREATING OCCUPANTS FROM THE VEHICLE. WHILE ESTABLISHING A PERIMETER I CONTACTED A SUBJECT WHO WITNESSED THE COLLISION. I CONTACTED W1 [REDACTED].

[REDACTED] STATED THAT SHE WAS TRAVELING WESTBOUND ON BETHANY HOME ROAD IN THE MIDDLE LANE AT APPROXIMATELY 4100 WEST BLOCK. ACCORDING TO [REDACTED] SHE OBSERVED THE RED CHEVY CAVALIER [COBALT] IN THE NUMBER ONE LANE. [REDACTED] ESTIMATED THE VEHICLES SPEED TO BE 45 MPH. [REDACTED] STATED THAT THE RED CHEVY BEGAN TO MAKE A GRADUAL LEFT TURN CROSSING ALL WESTBOUND LANES JUST IN FRONT OF [REDACTED]. [REDACTED] KEPT STATING THAT IF SHE WOULD HAVE BEEN A SECOND QUICKER THE CAR WOULD HAVE HIT HER HEAD ON. AFTER THE CAR PASSED JUST IN FRONT OF HER SHE HEARD A "BOOM" AND THEN SAW A PUFF OF SMOKE. [REDACTED] STATED SHE TURNED AROUND AND CALLED POLICE. [REDACTED] WAS VISIBLY UPSET AT THE TIME OF CONTACT.

THE FOLLOWING PHOENIX FIRE UNITS ALSO ARRIVED ON SCENE TO ASSIST. ENGINE 15, LADDER 24, RESCUE 26, AND RESCUE 18.

I MAINTAINED MY PERIMETER POSITION UNTIL I WAS LATER RELIEVED.

VCU/5079

VICTIM RECEIVED RIGHTS INFORMATION: NO

MAIL-IN SUPPLEMENT:

INVOICES:

DR ENTERED BY : 5079

DR FINALIZED BY : A3154

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Continued.

TA000126833

** PUBLIC **

PHOENIX POLICE DEPARTMENT REPORT

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SUPPLEMENT

PAGE NUMBER: 2

DR NUMBER: 2010 01363419 3

END OF REPORT

DR NO: 2010 01363419 003

** PUBLIC **

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SUPPLEMENT

PAGE NUMBER: 1

DR NUMBER: 2010 01363419 4

REPORT DATE: 20101208 TIME: 0956

TYPE OF REPORT: FATAL TRAFFIC COLLISION

OFFENSE: 963

LOCATION: 004100 W BETHANY HOME ROAD

BEAT: 0914 GRID: CB19

DATE/TIME OF OCCURRENCE: SUN 092610 0354

REPORTING OFFICER[S]: PATHE DIOP

8952 UNIT: 91J

OFFENSE INVOLVED: BIAS - NONE(NO BIAS)

***** NARRATIVE *****

SERIAL NUMBER: 8952

ON 09-26-10, BETWEEN 0419 AND 0650 I WAS DISPATCHED TO THE INTERSECTION OF N. 41ST AV. AND BETHANY HOME RD TO BLOCK WESTBOUND TRAFFIC. I REMAINED AT THAT LOCATION UNTIL I WAS RELIEVED BY OFFICER MAJARUCON 8342. NO ONE ACCESSED THE SCENE FROM MY SIDE.

VCU/5079

VICTIM RECEIVED RIGHTS INFORMATION: NO

MAIL-IN SUPPLEMENT:

INVOICES:

DR ENTERED BY : 5079

DR FINALIZED BY : A3154

END OF REPORT

DR NO: 2010 01363419 004

TA000126835

** PUBLIC **

PHOENIX POLICE DEPARTMENT REPORT

** RECORD **

SUPPLEMENT

PAGE NUMBER: 1

DR NUMBER: 2010 01363419

5

REPORT DATE: 20101208 TIME: 1005

TYPE OF REPORT: FATAL TRAFFIC COLLISION

OFFENSE: 963

LOCATION: 004100 W BETHANY HOME ROAD

BEAT: 0914 GRID: CB19

DATE/TIME OF OCCURRENCE: SUN 092610 0354

REPORTING OFFICER[S]: ADELBERT CARAIG
CHRISTOPHER COLLINS

8646
8813

UNIT: 91K

OFFENSE INVOLVED: BIAS - NONE(NO BIAS)

**** NARRATIVE ****

SERIAL NUMBER: 8646

ON 092610 AT APPROXIMATELY 0403 OFC COLLINS 8813 AND I [WERE] INSTRUCTED BY SGT ROTHER 4304 TO GO TO ST. JOSEPH'S HOSPITAL AT 350 W THOMAS RD AND CHECK THE STATUS AND IDENTITY OF THE TWO SUBJECTS INVOLVED IN A VEHICLE ACCIDENT LOCATED AT 43RD AVE AND BETHANY HOME RD. WE CONTACT CAPT NELSON OF LADDER 24 WHO TOLD ME THE RIGHT REAR PASSENGER'S NAME WAS [REDACTED] [REDACTED] TOLD THE CAPTAIN HIS NAME AND ALSO GAVE HIM THE PHONE NUMBER OF HIS MOTHER HOUSE. CAPTAIN NELSON TOLD ME HE DID NOT RETRIEVE ANY FURTHER INFO ON [REDACTED]. CAPTAIN NELSON STATED THE OTHER SUBJECT WAS JOHN DOE, THEY COULD NOT GET ANY INFO ON HIM.

I THEN CALLED THE PHONE NUMBER ADRIAN HAD GIVEN THE FIRE DEPARTMENT. I SPOKE WITH [REDACTED] WHO TOLD ME SHE IS THE BABYSITTER AND SHE TOLD ME THE FOLLOWING, [REDACTED]'S MOTHER'S NAME IS [REDACTED] AND SHE IS ON [AN] ALASKAN CRUISE. [REDACTED] TOLD ME [REDACTED] IS RETURNING HOME AT 8 PM TONIGHT. [REDACTED] TOLD ME SHE WAS ON HER WAY TO THE HOSPITAL.

VCU/5079

VICTIM RECEIVED RIGHTS INFORMATION: NO

MAIL-IN SUPPLEMENT:

INVOICES:

DR ENTERED BY : 5079

DR FINALIZED BY : A3154

END OF REPORT

DR NO: 2010 01363419

005

TA000126836

** PUBLIC **

PHOENIX POLICE DEPARTMENT REPORT

** RECORD **

SUPPLEMENT

PAGE NUMBER: 1

DR NUMBER: 2010 01363419

6

REPORT DATE: 20101208 TIME: 1015

TYPE OF REPORT: FATAL TRAFFIC COLLISION

OFFENSE: 963

LOCATION: 004100 W BETHANY HOME ROAD

BEAT: 0914 GRID: CB19

DATE/TIME OF OCCURRENCE: SUN 092610 0354

REPORTING OFFICER[S]: CHRISTOPHER COLLINS
LAURA KALISZAK

8813
8643

UNIT: 91K

OFFENSE INVOLVED: BIAS - NONE(NO BIAS)

**** NARRATIVE ****

SERIAL NUMBER: 8813

ON 092610 AT 0403 HOURS OFFICER CARAIG 8646 AND I RESPONDED TO 4300 WEST BETHANY HOME ROAD TO ASSIST ADDITIONAL OFFICERS IN A COLLISION WITH SERIOUS INJURIES.

UPON ARRIVAL SERGEANT ROTHER 4304 REQUESTED A PATROL UNIT TO GO TO ST. JOSEPH'S HOSPITAL TO FOLLOW UP ON THE CONDITION OF TWO SUBJECTS INVOLVED IN THE COLLISION WHO WERE BEING TRANSPORTED FOR THEIR INJURIES.

OFFICER CARAIG AND I ARRIVED TO ST. JOSEPH'S HOSPITAL EMERGENCY ROOM WHERE BOTH SUBJECTS WERE TRANSPORTED TO. ONE OF THE SUBJECTS WAS UNABLE TO BE IDENTIFIED DUE TO NO IDENTIFICATION BEING FOUND ON HIS PERSON OR IN THE VEHICLE. THE SECOND SUBJECT, BELIEVED TO BE A REAR SEAT PASSENGER IN THE COLLISION, WAS IDENTIFIED AS [REDACTED]

AT 0432 HOURS, DOCTOR TOMEH PRONOUNCED THE UNKNOWN OCCUPANT INVOLVED IN THE COLLISION DECEASED.

I CONTACTED SERGEANT ROTHER BY PHONE TO RELAY THE INFORMATION HE REQUESTED.

THERE IS NO FURTHER INFORMATION REGARDING MY INVOLVEMENT IN THIS INCIDENT.

VICTIM RECEIVED RIGHTS INFORMATION: NO

MAIL-IN SUPPLEMENT:

INVOICES:

DR ENTERED BY : 5079

DR FINALIZED BY : A3154

END OF REPORT

DR NO: 2010 01363419

006

TA000126837

DR / INCIDENT
CITATION #

2010-1363419

DATE: 07/26/10

TIME: 0354

RADIO
CODE #

963

SERIAL #

6619

SQUAD #

721

LOCATION:

4100 W Bethany Home Rd

INFORMATION:

1 Veh

START DATA:

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END DATA:

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CITY OF PHOENIX, ARIZONA
POLICE DEPARTMENT

MISD: ☐ FELONY ☐

80-93
Rev. 04/05

DIGITAL DATA
FORM

SERVICE PARTS IDENTIFICATION

DO NOT REMOVE

1G1AK15F767

JZMN8B

1AK37

AK5	AR9	B34	B35	B84	C67	DC8	FE1	FY1	IPB	J41
K64	LOD	L61	MN5	MX0	NC7	NU3	N46	PG1	QTU	R6P
R8K	R9U	SLM	T43	UN0	UQ4	V73	YF5	1LS	1SZ	14B
14I	6AR	7AR	74U	8AA	9AA					

14B

BC/CC

U 9260

← 6000
41ST AV

← 4100
W BETHANY HOME RD

12 05









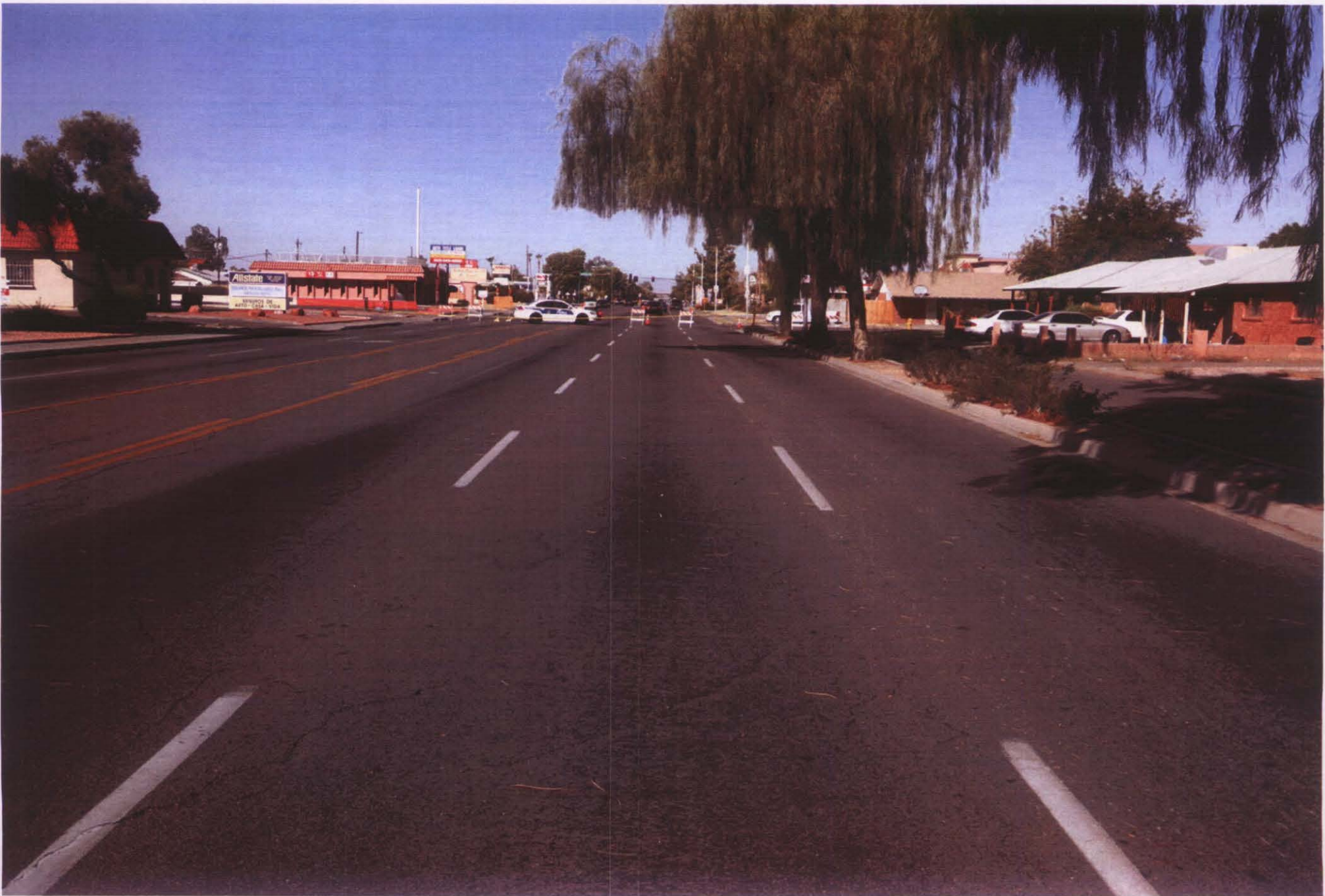




TA000126846



TA000126847















TA000126854









TA000126858







TA000126861



















